ADMINISTRATIVE APPEALS TRIBUNAL
NATIONAL DISABILITY INSURANCE SCHEME DIVISION
PERTH REGISTRY **2023/4494**

FORWARD FOCUSED GROUP PTY LTD
Applicant

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

INDEX

Document Number	Date	Document Description	Page
T1	26.06.2023	Application for review of decision attaching:	1 – 3
	08.06.2023	***Reviewable decision,*** *varying determination dated 20.12.2022*	4 – 24
T2	20.12.2022	PDMS (EC22-002581) - Attachment 1 - Revocation of Registration of Forward Focused Group Pty Ltd	25 – 31
T3	20.12.2022	PDMS (EC22-002581) - Attachment 2 - Banning Order issued to Forward Focused Group Pty Ltd	32 – 39
T4	15.11.2022	PDMS (EC22-002235) - Attachment 1 - Letter from Philip Halton to Tom Monks	40
T5	Undated	PDMS (EC22-002000) - Attachment 01A - Evidence Matrix	41 – 43
T6	Undated	PDMS (EC22-002000) - Attachment 01B - Evidence Matrix	44 – 45
T7	19.10.2022	PDMS (EC22-002000) - Attachment 02A - Suspension Notice to FFG	46 – 53
T8	19.10.2022	PDMS (EC22-002000) - Attachment 02B - Notice of intended banning order and revocation of registration to FFG	54 – 59
T9	10.08.2022	PDMS (EC22-002000) - Attachment 04 - Provider Register Extract of FFG	60 – 63
T10	As at 14.10.2022	PDMS (EC22-002000) - Attachment 20 - Screenshot of FFG website 'Corporate News' page	64
T11	As at 14.10.2022	PDMS (EC22-002000) - Attachment 21 - Screenshot of FFG website 'Our Team' page (Part 1)	65
T12	As at 14.10.2022	PDMS (EC22-002000) - Attachment 22 - Screenshot of FFG website 'Our Team' page (Part 2)	66

Lodged on behalf of the Respondent, the Commissioner of the NDIS Quality and Safeguards Commission

Prepared by: Karlie Dickinson
AGS lawyer within the meaning of s 55I of the *Judiciary Act 1903*

Address for Service:
The Australian Government Solicitor
Level 34, 600 Bourke Street, Melbourne VIC 3000

Contact: Karlie Dickinson

File ref: 23004627
Telephone: 03 9242 1244
Facsimile: 02 6169 3054
E-mail: karlie.dickinson@ags.gov.au

Document Number	Date	Document Description	Page
T13	As at 14.10.2022	PDMS (EC22-002000) - Attachment 23 - Screenshot of FFG website 'Our Team' page (Part 3)	67
T14	As at 14.10.2022	PDMS (EC22-002000) - Attachment 24 - Screenshot of FFG website 'Our Team' page (Part 4)	68
T15	As at 14.10.2022	PDMS (EC22-002000) - Attachment 25 - Screenshot of FFG website 'Our Team' page (Part 5)	69
T16	As at 14.10.2022	PDMS (EC22-002000) - Attachment 26 - Screenshot of FFG website 'Service Offerings' page	70
T17	As at 14.10.2022	PDMS (EC22-002000) - Attachment 27 - Screenshot of FFG website 'SDA Houses' (Part 1) page	71
T18	As at 14.10.2022	PDMS (EC22-002000) - Attachment 28 - Screenshot of FFG website 'SDA Houses' (Part 2) page	72
T19	As at 13.10.2022	PDMS (EC22-002000) - Attachment 32 - NDIS Commission searches for counsellor qualifications of Sally See dated	73
T20	As at 14.10.2022	PDMS (EC22-002000) - Attachment 33 - Screenshot of FFG Facebook page (SDA offering)	74
T21	As at 14.10.2022	PDMS (EC22-002000) - Attachment 34 - Screenshot of FFG Facebook page (Employment services offering)	75
T22	As at 14.10.2022	PDMS (EC22-002000) - Attachment 39 - Screenshot of FFG Facebook page (SDA offering)	76
T23	07.06.2022	PDMS (EC22-002000) - Attachment 41 - FFG Service Agreement with Sarah Gilbert	77 – 85
T24	26.11.2021	PDMS (EC22-002000) - Attachment 46 - Email from Tegan Bonham to 'Accounts' dated 26 November 2021	86
T25	28.03.2022	PDMS (EC22-002000) - Attachment 51 - Email from 'FFG Admin' to 'accounts' dated 28 March 2022	87
T26	31.03.2022	PDMS (EC22-002000) - Attachment 54 - Email from Blake Sadler to feedback@ndis.gov.au dated 31 March 2022	88
T27	18.10.2022	PDMS (EC22-002103) – Attachment N(31) – Statement of Sarah-Jane Hammond (18 October 2022)	89 – 101

Administrative Appeals Tribunal

Application for Review of Decision (Organisation)

This form is for organisations applying for a review of a decision in the General Division, Freedom of Information Division, National Disability Insurance Scheme Division, Security Division, Small Business Taxation Division, Taxation & Commercial Division or Veterans' Appeals Division of the AAT.

If you are an individual, please complete the AAT form *Application for Review of Decision (Individual)*.

Please read the *Guide to applying for review* before completing this form. You must complete the fields and answer questions marked with an asterisk (*).

SECTION 1 APPLICANT (ORGANISATION)

Organisation name *	Forward Focused Group Pty LTD (ACN 643 878 639)		
ABN	98643878639		
Street address *	Unit 2 / 210 Jull Street ARMADALE	State: WA	Postcode: 6112
Postal address * 'As above' if also your street address.	As above	State:	Postcode:
Contact person	Mr ☒ Mrs ☐ Ms ☐ Miss ☐ Other:		
	Name: Simon Reid		
	Position in organisation: Director		
Email	info@tomandcolegal.com.au		
Telephone * / Fax	Landline: (08) 6255 5737	Mobile:	Fax: ( )
Preferred method for receiving correspondence Please select one *	Email: ☒	Fax: ☐	Post: ☐

Representative If someone will represent your organisation, please fill in these details	Name: Mr Tom Monks		
	Organisation: Tom & Co Legal		
	Postal address: 45 Delawney Street BALCATTA	State: WA	Postcode: 6021
Email	info@tomandcolegal.com.au		
Telephone / Fax	Landline: (08) 6255 5737	Mobile:	Fax: ( )
Preferred method for receiving correspondence Please select one *	Email: ☒	Fax: ☐	Post: ☐

Interpreter *	Does any person need an interpreter?	Yes ☐ No ☒	If yes, for which language or dialect?	

Turn to page 2 ➔

© Commonwealth of Australia

Assistance	If any person has a disability or other special need and would like some assistance, please indicate the type of disability/need and assistance required:		
	Physical (e.g. wheelchair user)	☐	
	Sensory (e.g. hearing or visual)	☐	
	Other, please specify:	☐	

SECTION 2 DECISION

Date you received the decision you want reviewed *

09 / 06 / 2023

Are you sending us a copy of this decision?

Yes ☒ Go to section 3 – **attach a copy of the decision**

No ☐ Complete all of section 2, then go to section 3

Briefly describe the decision

Internal review decision of s 100 of the *National Disability Insurance Scheme Act 2013*. Original decision made on 20 December 2022 to issue a 10 year Banning Order against the organisation under s73ZN(1)(a) of the above Act. Current decision is to issue a 3 year Banning Order.

Who made the decision? Name and address of organisation

Name:
Sian Leathem, Complaints Commissioner, NDIS Quality & Safeguards Commission
Address:
Level 1, 200 St Georges Terrace
PERTH
State: WA
Postcode: 6000

Date the decision was made

08 / 06 / 2023

Decision reference

IR (10) 22/23 and ICM 23/198

SECTION 3 REASONS FOR THE APPLICATION

Why do you claim the decision is wrong? *

Please read the 'Reasons you are making an application' section in the *Guide to applying for review* before answering this question.

The NDIS Quality & Safeguards Commission failed to provide the organisation's Director with disclosure on allegations made and what evidence was relied on to make the original decision. The Director was unable to properly address any allegations and was not given the opportunity to work with the Commission during their investigative stage. The Director provided a submission based on the little evidence made available by the Commission on 20 March 2023 to assist with the internal review process. The Commission refused to give any weight to this submission. The Banning Order is unfair based on the lack of evidence provided and denying the Director the opportunity to respond to the allegations made against the organisation.

Turn to page 3 ➔

SECTION 4 TAX DECISIONS ONLY

Please answer both of these questions if you are applying to us for review of a tax decision.

Please refer to the 'Tax Decisions' and 'Application Fees' sections in the *Guide to applying for review* for more information before answering these questions.

1. Does the decision relate to a small business entity?

   Yes ☐

   No ☐

2. Is the amount of tax in dispute less than $5,000?

   Yes ☐

   No ☐

   If yes, please state the amount of tax in dispute:

   $

SIGNATURE

Signature Tom & Co Legal **Date** 26 / 06 / 2023

Print name Tom Monks

* Mandatory field/question

NDIS Quality and Safeguards Commission

Our ref: IR (10) 22/23 and ICM23/198

Tom & Co Legal Pty Ltd
PO Box Z5567
Perth WA 6000

Attention: Mr Tom Monks

By email to: info@tomandcolegal.com.au

Notice of internal review decision
Section 100 of the *National Disability Insurance Scheme Act 2013* (NDIS Act)

Dear Mr Monks

I refer to the email received by the NDIS Quality and Safeguards Commission (**the NDIS Commission**) on 21 February 2023 requesting an internal review of the decision made on 20 December 2022 to impose a banning order against your client, Forward Focused Group Pty Ltd (**FFG**), for a period of 10 years under section 73ZN(1)(a) of the NDIS Act (**the original decision**).

I am the delegate of the NDIS Commissioner for the purposes of section 100 of the NDIS Act, and am authorised to make a decision on this internal review.

The internal review decision
I have decided to **vary** the original decision. This means the banning order made against FFG remains in place, however it is changed or altered in some respect.

The variation I have decided to impose is to reduce the duration of the banning order from 10 years to 3 years. In my view, this corresponds with the amount of time it is reasonably expected to take for criminal proceedings relating to FFG to be finally determined. Upon determination of those proceedings, the banning order against FFG can be revisited and consideration given to whether it should be varied any further (or revoked entirely).

I enclose a copy of the banning order as varied, and the reasons for my review decision at **Attachments A and B** to this notice.

Consequences of review decision
The original banning order made against FFG is not disturbed and continues to have effect from **5:30pm on 20 December 2022 (AWST), however it will only remain in force until 12:00am on 21 December 2025 (AWST).**

Engaging in conduct that breaches a banning order is a contravention of section 73ZN(10) of the NDIS Act. A contravention of a banning order may attract a civil penalty of up to 1,000 penalty units, however for a corporation this may be up to 5 times the amount of the maximum penalty, amounting to $1,375,000.

External review rights

If FFG is dissatisfied with my review decision, it may apply to the Administrative Appeals Tribunal (AAT) for a review of the decision. I note this internal review decision was made outside of the statutory timeframe imposed by section 100 (6A) of the NDIS Act. However, FFG is still able to apply within 28 days after receiving this notice of decision to the AAT for review of this decision pursuant to section 29(3)(b)(i) of the *Administrative Appeals Tribunal Act 1975* (Cth). Further information about applying to the AAT for a review can be found at https://www.aat.gov.au/apply-for-a-review/national-disability-insurance-scheme-ndis or by contacting the AAT on 1800 228 333.

Variation or revocation of banning order

Section 73ZO of the NDIS Act allows the NDIS Commissioner to vary or revoke a banning order at any time, on her own initiative, or in response to an application by the person against whom the order was made. If FFG is minded to request a variation or revocation of the banning order against it, an application must be in accordance with the matters set out in section 73ZO of the NDIS Act.

Contact details

Should you have any queries about this matter, please do not hesitate to contact Pascal Moussa, Lawyer, on 02 9942 5726 or at pascal.moussa@ndiscommission.gov.au.

Yours sincerely



Sian Leathem

Complaints Commissioner

NDIS Quality and Safeguards Commission

8 June 2023

Encl: Attachment A – Banning order (varied on 8 June 2023) issued to FFG

Attachment B – Statement of Reasons for Internal Review Decision

NDIS Quality and Safeguards Commission

NATIONAL DISABILITY INSURANCE SCHEME ACT 2013 (CTH)
SECTION 73ZN BANNING ORDER

I, Sian Leathem, as delegate of the Commissioner of the NDIS Quality and Safeguards Commission under the *National Disability Insurance Scheme Act 2013* (the NDIS Act), make this banning order with respect to **Forward Focused Group Pty Ltd.**

I make the banning order under section 73ZN(1)(a) of the NDIS Act on the basis that the registration of Forward Focused Group Pty Ltd as a registered NDIS provider was revoked on 20 December 2022.

Pursuant to section 73ZN(1)(a) of the NDIS Act, I prohibit Forward Focused Group Pty Ltd from providing supports or services, directly or indirectly, to NDIS-funded participants for a period of three (3) years from the date that this order takes effect.

My reasons for making this order are set out in the enclosed statement of reasons.

This order varies the banning order made on 20 December 2022.

This order takes effect from **20 December 2022 until 12:00am on 21 December 2025 (AWST).**

Sian Leathem

Complaints Commissioner

NDIS Quality and Safeguards Commission

8 June 2023

Attachment B

Statement of Reasons

Internal review decision – section 100 of the *National Disability Insurance Scheme Act 2013 (*NDIS Act)

Preliminary matters

1. This statement of reasons outlines why I have decided to vary the banning order made on 20 December 2022 under section 73ZN(1)(a) of the NDIS Act, which prohibited Forward Focused Group Pty Ltd (FFG) from providing supports and services, directly or indirectly, to NDIS-funded participants for a period of 10 years, effective from 5:30pm on 20 December 2022.

2. In this statement of reasons, I refer to the banning order made on 20 December 2022 as **the original decision**.

3. Section 99(1), table item 15 of the NDIS Act confirms the original decision can be subject to internal review (as it is identified as a 'reviewable decision').

4. Section 100(2) of the NDIS Act requires a request for review of a decision to be made within three months after receiving notice of the decision. I note FFG requested an internal review of the original decision within the statutory deadline.

5. Section 100(6A) of the NDIS Act requires an internal reviewer to make a decision either:

    a. confirming the reviewable decision;

    b. varying the reviewable decision; or

    c. setting aside the reviewable decision and substituting a new decision.

Role of the internal reviewer

6. In reviewing the original decision, my task was to make the correct or preferable decision in accordance with the law and any relevant policies of the NDIS Commission. In doing so, I considered the evidence that was before the original decision-maker, as well as any new evidence that was before me at the time of making my decision.

7. In deciding what is the correct or preferable decision, I needed to be satisfied on the balance of probabilities of any findings of fact that I made.

Decision

8. I have decided to **vary** the original decision.

9. The variation I have decided to impose is to reduce the duration of the banning order from 10 years to 3 years. In my view, this corresponds with the amount of time it is reasonably expected for court proceedings that relate to FFG to be finally determined. Upon determination of those proceedings, the banning order against FFG can be revisited and consideration given to whether it should be varied any further (or revoked entirely).

10. The banning order made on 20 December 2022 (and varied on 8 June 2023), therefore, will remain in place until **12:00am on 21 December 2025 (AWST)**, unless it is varied or revoked earlier.

Materials on which my findings are based

11. In coming to my decision, I had regard to the following material:

    a. the notice and statement of reasons for the original decision, dated 20 December 2022;

    b. the NDIS Act;

    c. the NDIS Quality and Safeguards Commission Compliance and Enforcement Policy, version 2.0 dated June 2019;

    d. the NDIS Quality and Safeguards Commission Banning Order Policy, version 1.0 dated April 2022 (**the NDIS Commission Banning Order Policy**);

    e. the submissions of FFG's legal representative, Mr Tom Monks (Legal Practitioner Director of Tom & Co Legal Pty Ltd), relating to the decision proposed to be made by the original decision-maker, dated 30 November 2022;

    f. the submissions of Mr Monks, relating to FFG's application for internal review, dated 20 March 2023;

    g. materials which were before the original decision-maker, particularly:

        i. Briefing note (EC22-002000) relating to the notice of intention to make a banning order against FFG;

        ii. Briefing note (EC22-002581) relating to the decision to make a banning order against FFG;

        iii. the Magistrates Court of Western Australia Prosecution Notice, signed on 18 October 2022, in relation to the charges laid upon the former director of FFG, Mrs Vida Reid;

        iv. the Statement of Material Facts, dated 19 October 2022, prepared by the National Disability Insurance Agency (**NDIA**) and lodged in the criminal proceedings against Mrs Reid;

        v. Australian Securities and Investments Commission (**ASIC**) Company Extract for Forward Focused Group Pty Ltd;

    h. correspondence between the original decision-maker and Mr Monks, specifically:

        i. the letter from Mr Monks to the original decision-maker, dated 31 October 2022, seeking both an extension of time to make submissions and further information from the NDIS Commission;

ii. the letter from original decision-maker to Mr Monks, dated 15 November 2022, granting an extension of time to make submissions and refusing the request for further information; and

i. further relevant evidence that came to my attention during the course of the internal review, namely:

i. the sworn statement of NDIS participant, Ms Sarah-Jane Clulow, dated 11 October 2022;

ii. the sworn statement of NDIS participant, Ms Meghan Goodwin, dated 12 October 2022; and

iii. three complaints made to the NDIS Commission in relation to FFG's alleged involvement in fraudulent activity:

- complaint #: 4-37380907579;
- complaint #: 4-38279458621; and
- complaint #: 4-37833786005.

Relevant legislation

12. Section 73ZN(1)(a) of the NDIS Act gives the Commissioner (or her delegate) the power to 'make an order (*a banning order*) prohibiting or restricting specified activities by an NDIS provider, or by a person who was an NDIS provider, if the Commissioner has revoked the registration of the person as a registered NDIS provider.'

13. Under section 73ZN(3) of the NDIS Act, a banning order may apply generally or be of limited application, and may be permanent or for a specified period.

14. Section 73ZN(7) of the NDIS Act states that the Commissioner may only make a banning order against a person after giving the person an opportunity to make submissions to the Commissioner on the matter.

15. Section 73ZN(8)(b) of the NDIS Act states that section 73ZN(7) does not apply if the Commissioner's grounds for making the banning order are, or include, that the Commissioner has revoked the registration of the person as a registered NDIS provider.

16. Section 73ZN(9) sets out the various requirements surrounding any banning order made as follows:

'The Commissioner must:

(a) give the banning order to the person against whom the order is made; and

(b) include in the banning order a statement of reasons for the order; and

(c) if the banning order is against a person who is employed or otherwise engaged by an NDIS provider or is a member of the key personnel of an NDIS provider—notify the NDIS provider of the order as soon as possible.'

Background and procedural history of matter

17. From 19 November 2020 to 20 December 2022, FFG was a registered NDIS provider with the NDIS Commission.

18. On 19 October 2022, the original decision-maker issued FFG with a notice of intention (NOI) to revoke the registration of FFG and, consequently, make a banning order against FFG. The NOI invited FFG to make submissions in relation to both the proposed revocation and banning order by no later than 5pm (AWST) on 16 November 2022 (notwithstanding that no submission period was required to be afforded to FFG in relation to the proposed banning order, per section 73ZN(8)(b) of the NDIS Act).

19. On 19 October 2022 the original decision-maker also decided to suspend the registration of FFG for a period of 30 days until 19 November 2022. The reasons for noting this become evident below.

20. The evidence supporting the proposed revocation of FFG's registration, proposed banning order to FFG and the suspension of FFG's registration was similar or overlapped considerably.

21. On 31 October 2022, Mr Monks wrote to the original decision-maker to:

    a. confirm he represented FFG; and

    b. seek an extension of 28 days for FFG to provide submissions (presumably in relation to the proposed banning order and revocation of registration, given the suspension of registration had already occurred and did not require a submission period to be afforded to FFG); and

    c. seek a copy of the information held by the NDIS Commission in determining to *suspend the registration of FFG*. I note Mr Monks did not make such a request in relation to the proposed banning order. However, given the evidential similarities noted above, it appears the original decision-maker adopted a broad interpretation to Mr Monk's request and understood him to also be seeking the material that supported the banning order proposed to be made.

    Mr Monks requested the original decision-maker provide a response in relation to these requests within 7 days.

22. The original decision-maker did not provide a response within the requested timeframe.

23. On 15 November 2022, the original decision-maker wrote to Mr Monks granting an extension of time for FFG to make further submissions in relation to the proposed banning order (as well as other regulatory action proposed to be taken against FFG and Mrs Reid). The new deadline for providing submissions was by 5pm (AWST) on 30 November 2022. The original decision-maker declined to provide the further information sought by Mr Monks on the basis that the original decision-maker was satisfied the evidence supporting the proposed banning order against FFG had been adequately disclosed in the notice dated 19 October 2022.

24. On 30 November 2022, Mr Monks provided a single, joint submission that addressed the regulatory action/s proposed to be taken against both FFG and Mrs Reid (including the banning order that is the subject of this internal review). I note those submissions alleged the original

decision-maker did not respond to Mr Monk's requests for an extension of time and further information. This is not correct. I have been provided with a copy of an email, dated 15 November 2022, sent at 6:04pm, from WACompliance@ndiscommission.gov.au to info@tomandcolegal.com.au, which attached the letter described above at paragraph 23, granting an extension of time and declining the request for further information.

25. On 20 December 2022, the original decision-maker made a banning order against FFG, prohibiting it from providing supports and services, directly or indirectly, to NDIS-funded participants for a period of 10 years, under section 73ZN(1)(a) of the NDIS Act, on the basis that the registration of FFG as a registered NDIS provider had been revoked. The banning order took effect from 5:30pm (AWST) on 20 December 2022.

26. On 21 February 2023, Mr Monks, on behalf of FFG, requested an internal review of the decision to make a banning order against FFG.

27. On 21 February 2023, the NDIS Commission emailed Mr Monks a formal acknowledgement in relation to the request for an internal review. The acknowledgment invited FFG to make submissions to be considered as part of the internal review by 5pm on 21 March 2023.

28. On 20 March 2023, Mr Monks provided submissions, on behalf of FFG, to the NDIS Commission.

29. A decision on the internal review was due by 22 May 2023.

30. On 19 May 2023, I wrote to Ms Michelle Frost (Paralegal at Tom & Co Legal Pty Ltd) to inform her that, in the course of conducting the internal review, I had become aware of further relevant information (which did not appear to have been considered by the original delegate when making the decision to issue a banning order against FFG). In order to consider such information, and afford FFG an opportunity to respond, I sought an extension of 1 month to finalise the internal review. Further, the extension was sought on the basis that it would also provide me with an opportunity to carefully and thoroughly consider FFG's submissions in this matter given the concerns FFG had raised in relation to the original decision-maker not properly considering or addressing its submissions.

31. On 24 May 2023, Ms Frost confirmed that FFG did not consent to the proposed extension of time.

32. On 1 June 2023, I wrote to Mr Monks and provided him with a copy of the further relevant material that I had considered as part of the internal review, and I informed him that my preliminary view was to maintain the banning order against FFG. In that letter, I invited FFG to make submissions to me in relation to both the 'additional' material and my proposed decision to maintain the banning order. I requested FFG notify me, by 5 June 2023, whether it wished to make submissions or not, following which I would advise the timeframe for making submissions.

33. On 6 June 2023, Mr Monks verbally advised lawyers for the NDIS Commission that FFG did not wish to make any further submissions and would await the internal review decision.

Findings and Reasons

34. I have considered the original decision made on 20 December 2022.

35. I am of the view that the original decision was the correct and preferable decision to be made, however, I disagree with the reasoning for the original decision.

36. Specifically, the aspects of the original decision that I disagree with are the following:

    a. the original decision adopted the same reasons cited for revoking FFG's registration as a registered NDIS provider on 20 December 2022. As a separate administrative decision, there should have been distinct or independent reasons for the banning order being issued to FFG; and

    b. the original decision was grounded in a broader range of considerations than was necessary (given the point I have made above at paragraph 36(a)). In my view, the decision should have been confined to a narrower and more probative set of material, specifically the evidence that related to FFG's involvement in perpetrating fraud against the National Disability Insurance Scheme (**NDIS**).

37. In summary, my view is that:

    a. by merely reiterating the reasoning for revoking the registration of FFG, the original decision failed to articulate the specific need or reason(s) for imposing a banning order upon FFG (in addition to revoking the entity's registration as a registered NDIS provider). Although section 73ZN(1)(a) did allow the original decision-maker to impose a banning order as he had previously *'revoked the registration of* [FFG] *as a registered NDIS provider'*, the use of this statutory power is discretionary. The Commissioner (or her delegates) are not required to ban each NDIS provider whose registration has been revoked. Rather, a banning order (made under section 73ZN(1)(a)) should, in principle, only be used if there is some further or compelling reason for such an order to be made given an NDIS provider will already be constrained from engaging in the NDIS as a result of the revocation of its registration. In other words, there should be some additional value, protection or benefit that a banning order provides - that is not afforded by the revocation of an NDIS provider's registration – to warrant the imposition of a banning order.

    b. I acknowledge the original decision-maker had a wide breadth of material before him. In my view, however, the evidence relating to FFG's alleged involvement in fraudulent activity (particularly given the quality and volume of such evidence) should have constituted the fundamental reason for banning FFG and prohibiting it from having access to NDIS participants and the broader disability care sector (notwithstanding that there may be others reasons to support the banning order too).

38. In the paragraphs below, I set out my reasons for reaching this decision.

Consideration of relevant material

39. In conducting this internal review, I relied upon a circumscribed amount of the material that was before the original decision-maker, and I also had regard to relevant materials that the

original decision-maker did not consider in the context of deciding to issue a banning order to FFG.

40. As a result, I make the following findings:

40.1. - Background Facts

a. FFG was formerly a registered NDIS provider operating in Western Australia, until 20 December 2022 when a delegate of the NDIS Commissioner revoked the registration of FFG.

b. In relation to FFG, Mrs Reid was:

i. the co-director from 28 August 2020 to 3 January 2021;

ii. the sole director from 4 January 2021 to 20 October 2022; and

iii. the co-director from 21 October 2022 to 1 November 2022.

c. Mr Simon Reid, who is the husband and business partner of Mrs Reid, was a co-director of FFG from 28 August 2020 to 3 January 2021 and from 1 November 2022 to present.

40.2. – Complaints submitted to the NDIS Commission

d. On 10 May 2022, the NDIS Commission received an anonymous complaint (Complaint #: 4-37380907579) via telephone that alleged FFG had been engaging in fraudulent activity with respect to NDIS participant, Ms Meghan Goodwin, by claiming against her NDIS plan for supports or services it had not provided to Ms Goodwin. Specifically, the complainant alleged that:

> *"….Megan was a resident at St Barts and took up residency into Forward focus group home on the 18/01/2022, Vida had been billing for support services dated back from when Megan was still at St Barts, this fraudulent activity has been reported to NDIS fraud reporting."*

e. On 10 August 2022, the NDIS Commission received a Participant Critical Incident (PCI) referral from the NDIA, recording a complaint made by Ms Elanor Smith to the NDIA. In the referral, Ms Smith is identified as an advocate/plan nominee for Ms Goodwin, and she alleges:

> *"….financial abuse of PPT's plan funding, billing for therapy or financial counselling while PPT is at TAFE, No support staff at accommodation at all, PPT has constantly run out of funding and has had 8 plans since January 2021. PPT is scared to report to Police until she is able to find alternative accommodation due to staff and owner aiming their attention at her for reporting issues."*

f. On 20 May 2022, the NDIS Commission received a confidential complaint (Complaint #: 4-37833786005) that raised allegations of FFG engaging in fraudulent activity with respect to NDIS participant, Ms Sarah-Jane Clulow, by claiming against her NDIS plan for

supports or services it had not provided to Ms Clulow. Specifically, the complainant(s) alleged that:

> "….[Ms Clulow's] *new plan started 2 to 3 months ago. There is already no more money for support coordination. The provider has used $7500 worth of Support Coordination services funding.* [Ms Clulow] *will need to go for an emergency review but if she is unable to acquire more funding she will be without a support coordinator and without access to supports. Without access to support* [Ms Clulow] *could be evicted from her accommodation.*
>
> *As the provider runs multiple companies they are double dipping and charging twice under each company. The provider is charging for services not provided. Uses the excuse that Yaran need more money or they will kick the PWD out.*

g. The above complaints were closed by the NDIS Commission following either:

   i. liaison with the NDIA who is responsible for investigating allegations of NDIS fraud; and / or

   ii. the NDIS Commission suspending the registration of FFG; and / or

   iii. the commencement of legal proceedings relating to the alleged fraud.

40.4. – Sworn Statements of Ms Goodwin and Ms Clulow

h. On 11 October 2022, Ms Clulow provided a sworn statement to the NDIA, which alleges (at paragraphs 13-18) that in relation to her NDIS plan:

   i. FFG submitted duplicate invoices for supports and services;

   ii. FFG submitted invoices in relation to supports and services that it had not provided to Ms Clulow; and

   iii. FFG overcharged or inflated the amount payable for supports and services it provided.

i. On 12 October 2022, Ms Goodwin provided a sworn statement to the NDIA. The statement of Ms Goodwin seems to allude to, or suggest that FFG fraudulently claimed funds from her NDIS plan (at paragraphs 25 - 26). However, those parts of Ms Goodwin's statement are equivocal in their assertion of fraud. As such, I note the following points made by Ms Goodwin, but attribute minimal weight to them:

   i. Ms Goodwin only received short term accommodation (STA) or respite supports and services from FFG on two occasions, the first being in early April 2022 for 5 days and the second being from 22 April 2022 to 2 May 2022. Any other claims submitted by FFG for STA *'would be false'*;

   ii. Any claims made by FFG in relation to self-managed building capacity *'is false'*. Ms Goodwin has never received such supports or services from FFG; and

iii. *'If there are any claims for house and yard maintenance, there was no yard'* at the premises in Safety Bay, WA where Ms Goodwin resided nor did FFG provide any *'gardening and house maintenance'* at an earlier premises where Ms Goodwin resided (St Barts, WA) as that facility had *'their own staff there that did that'*.

40.3. – Criminal charges & legal proceedings

j. On 19 October 2022, Mrs Reid was arrested and charged with several offences under sections 135.1(3) and 400.9(1) of the Criminal Code (Cth), which is contained in the Schedule to the *Criminal Code Act 1995* (Cth). Those charges related to Mrs Reid allegedly defrauding the NDIS *and using FFG as a vehicle through which to perpetrate that fraud*.

k. Specifically, the charges were that:

i. between 1 December 2021 and 17 May 2022 at Perth in the State of Western Australia, Mrs Reid dealt with money or other property, it being reasonable to suspect that such money or other property was proceeds of crime and at the time of dealing the value of the money or property was more than $100,000, contrary to section 400.9(1) of the Criminal Code (Cth);

ii. between 26 December 2021 and 23 June 2022 at Perth in the State of Western Australia, Mrs Reid dealt with money or other property, it being reasonable to suspect that such money or other property was proceeds of crime and at the time of dealing the value of the money or property was more than $100,000, contrary to section 400.9(1) of the Criminal Code (Cth);

iii. between 30 November 2021 and 8 April 2022 at Perth in the State of Western Australia, Mrs Reid caused payment requests to be submitted, which she knew to be false, to the NDIA, a Commonwealth entity, with the intention of dishonestly causing a loss, contrary to section 135.1(3) of the Criminal Code (Cth); and

iv. between 18 November 2021 and 19 April 2022 at Perth in the State of Western Australia, Mrs Reid caused payment requests to be submitted, which she knew to be false, to the NDIA, a Commonwealth entity, with the intention of dishonestly causing a loss, contrary to section 135.1(3) of the Criminal Code (Cth).

l. In the criminal proceedings relating to these charges, the NDIA lodged a Statement of Material Facts, dated 19 October 2022, which set out the facts supporting the charges (**the SoFM**). The SoFM alleges that, between 26 November 2021 and 22 June 2020, Mrs Reid and Mr Reid caused 81 false payment requests to be submitted against the NDIS plans of Ms Goodwin and Ms Clulow, with the intention of dishonestly causing a loss to the Commonwealth.

m. In considering the SoFM, I particularly had regard to the following allegations:

i. Mrs Reid and Mr Reid were joint signatories to company bank accounts for FFG, namely:

   - ANZ Bank account numbered 016253 152003884 (**the FFG ANZ account**); and
   - Westpac Bank account numbered 036032 736973 (**the FFG Westpac account**).

ii. between 3 February 2021 and 1 September 2022, numerous complaints were made to the NDIA in relation to the conduct and claiming patterns of FFG.

iii. on 1 September 2022, the NDIA commenced an investigation into the claims submitted by FFG.

iv. The NDIA's investigation discovered the matters set out below.

v. on 30 November 2021, the NDIA issued a new plan for NDIS participant, Ms Meghan Goodwin. On the same day, Mrs Reid contacted the NDIA and requested a copy of the new plan for Ms Goodwin, which was emailed to her. Within an hour of making that call, FFG made three separate claims for payment in relation to supports and services purportedly provide to Ms Goodwin. The claims were submitted against the plan expiring on 30 November 2021. On 1 December 2021, the NDIA made a payment of $43,004.60 into the FFG ANZ account. In my view, the claims described in the SoFM appear to be excessive and falsified. For example, the claims included 398 hours of house cleaning between 15 October 2021 and 30 November 2021 – this equates to 8.46 hours of cleaning every day for 47 days.

vi. Zettai Pty Ltd (trading as Assist Plan Managers) (**Assist**), a registered NDIS provider that performs the services of a Plan Manager, at various times received invoices from FFG for supports or services purportedly provided to various NDIS participants. Assist would then make claims to the NDIA for those supports or services, receive funds from the NDIA, and then forward those funds to FFG.

vii. between 30 December 2021 and 20 April 2022, Assist submitted 14 separate claims to the NDIA for supports or services purportedly provided by FFG to Ms Goodwin. The claims resulted in the payment of $5979.64 to Assist, who subsequently transferred those funds to the FFG ANZ Account.

viii. Ms Goodwin has provided a witness statement that she did not receive the supports or services purportedly provided in the claims referred to above.

ix. an NDIA forensic accountant examined (among other things) the statement of Ms Goodwin, NDIS payments records and banks statements for the FFG ANZ account. The NDIA forensic accountant calculated that the value of claims submitted by FFG where no support or service was provided to Ms Goodwin to be $127,475.30. The SoFM seems to indicate that $78,491.06 of this sum was

paid to an associated entity of FFG, namely Hybrid Hive Pty Ltd, and to that extent, I have disregarded that proportion of the alleged fraud.

x. the NDIA alleges that Mrs Reid, therefore, received money reasonably suspected of being the proceeds of crime.

xi. between 24 November 2021 and 22 April 2022, Assist submitted 14 separate claims to the NDIA for supports or services purportedly provided by FFG to Ms Clulow. The claims resulted in the payment of $86,192.60 to Assist, who subsequently transferred those funds to the FFG ANZ Account.

xii. between 25 May 2022 and 22 June 2022, Assist submitted 14 separate claims to the NDIA for supports or services purportedly provided by FFG to Ms Clulow. The claims resulted in the payment of $33,816.88 to Assist, who subsequently transferred those funds to the FFG Westpac account.

xiii. Ms Clulow has provided a witness statement that she did not receive the supports or services purportedly provided in the claims referred to above.

xiv. an NDIA forensic accountant examined (among other things) the statement of Ms Clulow, NDIS payments records and banks statements for the FFG ANZ account and the FFG Westpac account. The NDIA forensic accountant calculated that the value of claims submitted by FFG where no support or service was provided to Ms Clulow to be $120,009.48.

xv. as a result, the NDIA alleges that Mrs Reid received money reasonably suspected of being the proceeds of crime to the sum of $120,009.48.

xvi. Lastly, a former employee of FFG, Ms Leah Norman, who worked for FFG from 14 December 2020 until October 2021, alleges that Mrs Reid encouraged her to inflate the amount of time she spent coordinating support services for NDIS participants. Ms Norman alleges that Mrs Reid would “invoice bomb”, meaning she would claim for the residual funds left in an NDIS participants plan towards the end of the plan expiry, and Ms Norman fielded complaints from three separate plan managers about this type of claiming.

Conclusion/s in relation to relevant materials

41. In light of the above information, I am satisfied, on the balance of probabilities, that FFG engaged in fraudulent activity, or more specifically, that it was used as a vehicle through which fraud was perpetrated against the NDIS by its key personnel.

42. I give significant weight to the complaints submitted to the NDIS Commission in relation to Ms Goodwin and Ms Clulow, the NDIA’s SoFM and the sworn statement of Ms Clulow as these distinct pieces of evidence all corroborate the same allegation/s of FFG having been involved in defrauding the NDIS over a substantial period of time. The evidence presents a uniform and egregious account of FFG’s systems being used, or FFG’s key personnel systemically submitting false claims for payments against the NDIS plans of NDIS participants.

43. I note FFG has not provided any evidence to negate the fraud alleged above.

44. I also acknowledge there are criminal proceedings relating to this matter currently in process and a verdict has not yet been reached in those proceedings. However, as a national regulator, the NDIS Commission is not constrained from performing its statutory function to protect and safeguard NDIS participants whilst there is pending court action. This is particularly true in circumstances where the NDIS Commission has conducted an independent investigation in accordance with the legislation governing its operations (i.e. the NDIS Act and NDIS Rules) and determined that regulatory action is needed immediately to address a serious risk (i.e. financial abuse of NDIS participants and perpetration of fraud against the NDIS).

45. Another reason why I am not inclined to await the court outcome is that I am satisfied of the veracity of the evidence before me, particularly given:

    a. the evidence consists of, or involved the forensic examination of FFG's bank statements and payments claims submitted by FFG to the NDIA;

    b. the evidence has been gathered and scrutinised by the agency specifically charged with investigating NDIS fraud (i.e. the NDIA) as well as the Australian Federal Police; and

    c. the allegations against FFG have been made by various individuals and entities who have consistently described the same pattern of fraudulent claiming by FFG.

46. I acknowledge FFG has made submissions in relation to the evidence in this matter, and I deal with those below.

The submissions of FFG

47. I have considered the submissions made by Mr Monks, on 30 November 2022 and 20 March 2023.

48. In summary, the submissions of FFG denied the breadth of allegations put forth by the original decision-maker, which were that:

    a. FFG was providing support or services to NDIS participants for which it was not registered (i.e. specialist disability accommodation);

    b. the NDIS Commissions had received over 30 complaints regarding the safety and quality of supports and services provided by FFG;

    c. the NDIS Commission held information that suggested FFG does not support individuals to raise complaints they may have directly with FFG, without fear of retaliation from FFG of its key personnel;

    d. FFG does not have a complaints management and resolution system in place that ensures complaints are welcomed, acknowledged, respected and well-managed;

    e. FFG does not employ workers who hold the relevant qualifications for their role/s;

    f. FFG had not been acting with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions. The written communications of FFG with NDIS participants (or their family/support persons) included veiled and direct threats, bullying and harassment;

g. FFG was not acting with integrity, honesty and transparency. FFG had knowingly been submitting false claims for payments to the NDIA, with the intention of dishonestly causing a loss to a Commonwealth entity; and

h. FFG had not taken all reasonable steps to prevent and respond to the exploitation of people with disability. FFG had been seeking to act as both an NDIS provider for, and the authorised person, on behalf of NDIS participants, to engage with the NDIA in relation to their support provision/s and funding decisions.

49. I note that FFG provided a significant amount of information (and evidence to varying extents) to the original decision-maker to support its position.

50. Further, a key aspect of FFG's submissions was the assertion that the original decision-maker had failed to afford procedural fairness to FFG, and had not properly considered the submissions made by FFG when determining to issue the banning order. (Please refer to paragraphs 53-62 below, where I consider these submissions in further detail).

51. As already mentioned above, I have adopted a narrow(er) approach to this internal review and based my decision upon a more circumscribed amount of material than that relied upon by the original decision-maker, that is, I rely specifically upon the fraud that FFG is alleged to have been involved in. Therefore, in my view, it is not necessary or conducive to go into a detailed examination of all of the submissions FFG previously made, *rather I propose to deal solely with the aspects of FFG's submissions that relate to the matters upon which I have formed my decision (given the remaining matters have fallen away)*. Before, proceeding to do so, however, I acknowledge that there were deficiencies and failings by the original decision-maker with respect to:

a. sufficiently providing FFG with information about *some* of the allegations raised against it (noting that FGG was, on balance, adequately informed of the material before the original decision-maker); and

b. *clearly communicating his view or analysis of FFG's submissions*. I have reviewed internal working documents of the NDIS Commission that demonstrate the original decision-maker did consider the submissions of FFG, however, he was not persuaded by them. Unfortunately, the original decision failed to clearly articulate the reason/s for giving minimal weight to FFG's submissions.

52. The submissions made by Mr Monks that relate to the issue of fraud are found in paragraph 6 and on page 11 of the 30 November 2022 submission, and paragraphs 6-7, 16-17, 19-21 and 23-24 of the 20 March 2022 submission.

53. In summary, those submissions were that:

a. FFG emphatically denies the allegation that false claims were submitted for payment to the NDIA with the intention of dishonestly causing a loss to a Commonwealth entity;

b. the matter is currently the subject of criminal proceedings and it is inappropriate for the NDIS Commission to pursue the allegations until the criminal proceedings have been determined;

c. in the interests of *'procedural and substantive justice'*, FFG's *'fitness to hold an NDIS registration'* should not be decided until the criminal proceedings are determined;

d. requesting FFG to provide a response in relation to the alleged fraud is inappropriate and comprises FFG's legal defence;

e. the NDIS Commission's issuance of a banning order to FFG indicates that it has pre-determined FFG is guilty of the alleged fraud although the relevant evidence has not been tested in court yet;

f. FFG is concerned by the linkage of, the banning order made against it, to the criminal proceedings against Mrs Reid, because in the event that Mrs Reid is found not guilty, the banning order would remain in place and unjustifiably penalise FFG after the conclusion of the court matter;

g. In light of the above paragraph, it would have been prudent for the NDIS Commission to maintain the suspension of FFG, rather than issue a banning order to it. Adopting this approach would have protected the interests of all parties, including NDIS participants.

h. The NDIS Commission has not followed its own *Compliance and Enforcement Policy* by issuing the banning order as there were other regulatory actions available to the NDIS Commission to implement, such as the suspension of FFG's registration.

i. The NDIS Commission did not afford FFG procedural fairness (in line with the *National Disability Insurance Scheme (Procedural Fairness) Guidelines 2018*) given it failed to provide FFG with a fair opportunity to respond to all allegations against it.

j. FFG provided names of witnesses who could support its position in relation to the allegations against it. The NDIS Commission did not follow up those witnesses.

54. I consider each of these submissions in turn below.

55. In relation to the submission made by FFG at paragraph 53(a) above, I attributed minimal weight to FFG's categorical denial of the alleged fraud given FFG has not provided any evidence to support or exonerate it.

56. In relation to the submissions made by FFG at paragraphs 53(b), (c) and (d) above, I gave significant weight to these submissions as I acknowledge that the allegations against Mrs Reid (which implicate FFG) have not been proven to the criminal standard. I also acknowledge and respect the presumption of innocence in favour of Mrs Reid in relation to the criminal charges. However, the submissions of FFG ultimately did not dissuade me from my view that a banning order should be made against FFG. As noted earlier, pending court action does not prevent the NDIS Commission (or any national regulator) from performing its statutory function/s in the interim. Rather, it will often be the case that a regulatory body will need to take action for protective purposes until any associated court process is finalised, particularly in circumstances, such as the present, where there may be a serious risk involved in the alleged wrongdoing remaining unaddressed. I consider there would be a significant and indefensible risk associated with FFG being allowed to continue to engage in the NDIS sector until the criminal proceedings are determined - the likelihood of further harm to other NDIS participants to whom FFG may

provide supports or services (i.e. depletion of their NDIS funding) warrants the NDIS Commission imposing a banning order at this time to safeguard NDIS participants.

57. In relation to the submissions made by FFG at paragraph 53(e), I gave considerable weight to this assertion. I appreciate that, in the context of criminal proceedings, the standard of proof that applies is that allegations must be proven beyond a reasonable doubt. I am not purporting to stand in the shoes of the court or perform its judicial task. The making of a banning order is an administrative decision, and it only requires that I be satisfied on the balance of probabilities that FFG has engaged in the conduct alleged, which, I am, given the strength of the evidence referred to above at paragraphs 41 to 45.

58. In relation to the submission made by FFG at paragraph 53(f) above, I attributed minimal weight to FFG's concerns as it seems the entity does not fully understand the legislative framework concerning the issuance of a banning order. In the event that the criminal proceedings determine Mrs Reid is not guilty of the alleged fraud, section 73ZO of the NDIS Act enables the NDIS Commissioner to vary or revoke the banning order against FFG if satisfied that it is appropriate to do so. Further, a variation or revocation can be effected on the Commissioner's own initiative or upon application by FFG.

59. In relation to the submission made by FFG at paragraphs 53(g) and (h) above, I have given these submissions minimal weight as they, similarly, indicate that FFG does not fully understand the legislative provisions regarding the use of suspensions under section 73N of the NDIS Act. Firstly, if the NDIS commission were to suspend the registration of FFG instead of making a banning order against FFG, it would not provide a sufficient level of safeguarding to NDIS participants. A suspension would only prohibit FFG from providing supports and services for which it must be *registered* to deliver to NDIS participants. Meaning, FFG could continue to operate as an unregistered NDIS provider. Secondly, the particular use of the suspension power that is contended for by FFG is not appropriate. A suspension under section 73N is designed to be a temporary action (only in effect for 30 days) to address immediate or significant concerns held in relation to an NDIS provider. It is not intended to be used repeatedly or for a substantial period of time in relation to the same NDIS provider. If a suspension were to be consecutively issued, it would signal that a more permanent or enduring form of regulatory action is, in fact, needed.

60. In relation to the submission made by FFG at paragraph 53(i) above, I gave significant weight to FFG's concerns. As noted above, there were some procedural failings or deficiencies associated with the original decision, which I have given close attention to. To that end, on 1 June 2023, I notified FFG of the decision I was proposing to making on internal review and provided FFG with a copy of the material(s) I had relied upon in forming my preliminary view (*i.e. the sworn statements of Ms Goodwin and Ms Clulow, the NDIA SoFM and a summary of the complaints submitted to the NDIS Commission in relation to Ms Goodwin and Ms Clulow*). Further, I invited FFG to make submissions to me in relation to that information and the proposed internal review decision.

    Most importantly, the matters (or allegations) in relation to which FFG alleges that the original decision-maker failed to observe procedural fairness, notably, do not form part of my decision. I have based my decision on distinct considerations – i.e. the alleged fraud against the NDIS –

which I have ensured FFG has been sufficiently informed of, and given a fair opportunity to respond to.

61. In relation to the submission made by FFG at paragraph 53(j) above, I have attributed no weight to the assertion that the NDIS Commission failed to follow up with witnesses whom FFG identified as being able to support FFG's position. I can find no evidence of FFG having provided the original decision-maker (or I) with the names or contact details of relevant witnesses. I note that, in the context of a separate but related matter, namely the decision to issue a banning order to Mr Reid, Mr Monk claimed to be in possession of evidence that exculpated Mr Reid of the wrongdoing he was alleged to have engaged in, but he did not provide such information (even when requested to do so by the original decision-maker).

Section 73ZN(1)(a) of the NDIS Act – power to issue a banning order where the registration of a registered NDIS provider has been revoked

62. The banning order issued to FFG was made pursuant to section 73ZN(1)(a) of the NDIS Act.

63. The statutory test for issuing a banning order under this provision is singular. The NDIS Commissioner (or her delegate) must have revoked the registration of a person as a registered NDIS provider. Provided that process of revocation had occurred, it was open to the original decision-maker to impose a banning order.

64. I have been provided with a copy of the decision to revoke the registration of FFG on 20 December 2022. I am, therefore, satisfied that it was open to the original decision-maker to issue a banning order to FFG.

65. However, as mentioned above (at paragraphs 36-37) the original decision-maker should have clearly articulated the reason(s) as to why a banning order was warranted in the circumstances. The mere fact that section 73ZN(1)(a) conferred upon the original decision-maker the power to use this statutory tool, did not suffice or justify the use of it.

66. Despite the original decision-maker's omission in this regard, in my view there are compelling reasons to support or warrant the issuance of a banning order to FFG. Those reasons are that:

    a. FFG was, in effect, used by the key personnel of the company as a vehicle to perpetrate the alleged fraud against the NDIS. In my view, where an entity has facilitated the commission of fraud, it is not appropriate for it to remain engaged in the NDIS sector given the serious risk it poses to NDIS participants (i.e. the depletion of their NDIS funding);

    b. The revocation of FFG's registration does not provide a complete or wholesale level of safeguarding to NDIS participants given that FFG remains capable of providing supports and services to NDIS participants for which registration is not a requirement. The classes of supports and services that can be delivered by an unregistered NDIS provider are vast and would enable FFG to have access to the NDIS plans of thousands of NDIS participants.

    c. I acknowledge the making of a banning order in respect of FFG will significantly impact the operations of the business, and I have taken this into account. However, I consider

that the competing interest of ensuring NDIS participants, who may not be able to fully protect their own interests and who have a statutory right to safe services and protection from violence, abuse and exploitation, is paramount and takes precedence over the detriment FFG may experience if banned.

67. Further, I agree with the reasoning expressed by the original decision-maker in paragraphs 27 – 33 of the original decision in so far that he explained the objects of the NDIS Act (contained in section 3) as well as section 4(17)(b) of the NDIS Act are factors which also support the imposition of a banning order against FFG.

68. Therefore, I am satisfied that the making of a banning order against FFG is the correct and preferable decision in the circumstances.

The NDIS Commission Banning Order Policy

69. The *NDIS Commission Banning Order Policy* contemplates that a banning order can be *'issued pending the determination of [criminal] charges'* if, in the circumstances, the information and evidence obtained by the NDIS Commission supports a view that a banning order is warranted and appropriate.

70. For the reasons already noted above (at paragraphs 41 and 45), I consider a banning order against FFG to be warranted and appropriate.

Requirement to take proportionate and risk responsive action under NDIS Act

71. The NDIS Commission is required to conduct compliance and enforcement activities in a risk responsive and proportionate manner (per section 181D(4)(b) of the NDIS Act).

72. The *NDIS Commission's Banning Order Policy* notes that a banning order can have a significant impact on the recipient and on people with disability, and as such, it will be reserved for circumstances where it is needed to protect people with disability from the risk of being exposed to conduct that falls well short of acceptable standards. However, a banning order should not be for a longer period than is considered necessary.

73. Having regard to the criminal proceedings pending against Mrs Reid (which, as noted above, implicate FFG in fraudulent activity), I consider that a banning order for a period of 3 years is a risk responsive and proportionate measure as it corresponds with the amount of time it is reasonably expected to take for the criminal proceedings to be finally determined by the court. Upon determination of those proceedings, the banning order against FFG can be revisited and consideration given to whether it should be varied any further (or revoked entirely). I note a variation or revocation of the banning order could also take place *prior* to the determination of the court proceedings if appropriate or necessary.

74. In the meantime, the banning order will protect NDIS participants from the risk of having fraudulent claims submitted against their NDIS plans and their funding for disability supports or services being depleted.

75. The banning order will, therefore, remain in place until **12:00am on 21 December 2025 (AWST).**

Conclusion

76. The NDIS Provider Register published on the NDIS Commission's website will be updated to reflect the banning order made against FFG was affirmed on internal review.



Sian Leathem

Complaints Commissioner

Delegate of the NDIS Quality and Safeguards Commissioner

NDIS Quality and Safeguards Commission

8 June 2023

NDIS Quality and Safeguards Commission

Our ref: 4-HOIWASG

Forward Focused Group Pty Ltd
c/o Tom and Co Legal
Att: Director
Unit 2 Number 210 Jull Street
Armadale WA 6112

By email to: info@tomandcolegal.com.au; feedback@ffg.net.au;

Dear Director,

Notice of Revocation of your provider registration 4-4GHG-1073 under section 73P of the *National Disability Insurance Scheme Act 2013*.

I refer to my letter to you dated 19 October 2022 advising you of the proposed revocation of the registration of Forward Focused Group Pty Ltd ACN 643 878 639 ("the Provider") and the relevant facts and matters that I have considered in reaching the view the Provider has contravened, is contravening, or is likely to contravene the NDIS Act. I also gave you the opportunity to make submissions about this before I made my final decision.

I acknowledge the submission sent by Mr Tom Monks, Principal Director, Tom & Co Legal Pty Ltd to the Commission on 30 November 2022. The Commission has carefully considered the contents of the submission to determine whether to revoke the registration of the Provider.

I inform you that the contents of your submission have not changed the relevant facts and information held by the Commission in forming the preliminary view to revoke the registration of the Provider.

As detailed in the letter of 19 October 2022, the *National Disability Insurance Scheme Act 2013* (NDIS Act) gives me the power to revoke the registration of a person as a registered NDIS provider on the grounds listed in section 73P(1) of the NDIS Act.

The decision

I have made a decision to revoke the registration of Forward Focused Group Pty Ltd, **commencing from the date of this notice**. Reasons for my decision are outlined in Attachment A.

I have revoked the registration of the Provider because I reasonably believe that the Provider has contravened, is contravening, or is proposing to contravene the NDIS Act, as provided for by section 73P(1)(a) of the NDIS Act. Section 73ZN(8)(b) of the NDIS Act also gives me the power to make a Banning Order if I have revoked the registration as an NDIS provider. Please refer to the separate letter dated 20 December 2022 regarding the Banning Order.

The revocation means the registration of the Provider ceases to have effect from **5:00pm (AWST) on Tuesday 20 December 2022**.

Review under section 100 of the NDIS Act

You may request a review of my decision to revoke the registration of the Provider within 3 months from the date that the revocation takes effect.

Any application you may make for an internal review would be dealt with by someone other than me, the original decision-maker.

Should you wish to request a review of my decision, you may make the request in writing and email it to review@ndiscommission.gov.au or send it by post, addressed to:

Branch Head, Operations - North Central West
NDIS Quality and Safeguards Commission
PO Box 2862
BRISBANE QLD 4001

Alternatively, you may telephone my office on 1800 035 544 to request a review of the decision or arrange to make the request in person.

Once any review of the decision has been finalised by the reviewer, you may also seek a further review of the decision by the Administrative Appeals Tribunal as provided for under section 103 of the NDIS Act.

Non-compliance with the revocation

Please note that engaging in conduct that breaches the revocation of registration may be a contravention of section 73B of the NDIS Act, insofar as the NDIS rules may require that specified classes of supports provided under a participant's plans be provided only by NDIS providers who are registered to provide those classes of supports. A contravention of section 73B attract a civil penalty up to $55,500 for individuals.

NDIS Provider Register

Section 73ZS of the NDIS Act requires the Commissioner to maintain the NDIS Provider Register which must include certain information for each person who is a registered NDIS provider. Relevant to this matter, section 73ZS(5)(e) permits the NDIS Provider Register to include information about a former NDIS provider, including information about the revocation of a person's registration.

As I have decided to revoke the registration of the Provider with immediate effect, information about the revocation will be included on the NDIS Provider Register, available on the Commission's website.

Yours sincerely

Philip Halton
Branch Head, Operations – North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

Enc. Attachment A

NDIS Quality and Safeguards Commission

Statement of reasons for revoking the registration of Forward Focused Group Pty Ltd as a registered NDIS provider under section 73P of the *National Disability Insurance Scheme Act 2013* (NDIS Act)

This is a statement of reasons for the revocation of registration for Forward Focused Group Pty Ltd, under section 73P(1) of the *National Disability Insurance Scheme Act 2013* (NDIS Act).

Procedural steps

I refer to my letter dated 19 October 2022 advising of the proposed revocation of the registration of Forward Focused Group Pty Ltd ACN 643 878 639 ("the Provider") and the relevant facts and matters that I have considered in reaching the view the Provider has contravened, is contravening, or is likely to contravene the NDIS Act.

I also gave the Provider the opportunity to make submissions about this due no later than 5.00pm (AWST) on 16 November 2022.

I received a request for an extension to that timeframe and granted additional time for submissions through to 30 November 2022 (the extended submission date).

I acknowledge the submission sent by Mr Tom Monks, Principal Director, Tom & Co Legal Pty Ltd to the Commission on 30 November 2022. The Commission has carefully considered the contents of the submission to determine whether to revoke the registration of the Provider.

The relevant facts and information held by the Commission in forming the view to revoke the registration and make a Banning Order against the Provider are set out below.

Relevant facts and information

1. Forward Focused Group Pty Ltd is a registered NDIS provider, registration 4-4GHG-1073.

2. Forward Focused Group Pty Ltd (the Provider) is registered to provide the following services:

   Item 8 – Assistance with travel/transport arrangements; and
   Item 20 – Household tasks.

3. It is alleged that the Provider is providing supports to participants that the provider is not registered to provide. The Forward Focused Group website (www.forwardfocusedgroup.com.au) in its 'Service Offerings' offered SDA (Specialist Disability Accommodation) at three suburb locations. The Forward Focused Group Facebook page posted on at least two occasions 18 July 2022 and 28 September 2022 with the SDA service offering.

4. Since September 2021, the Commission has received over 30 complaints regarding the safety and quality of supports provided by Forward Focused Group. The Commission also holds information that suggests that the Provider does not support individuals to raise any complaints they may have directly with the provider, without fear of retaliation from the Provider or the key personnel.

5. This information strongly indicates that the Provider does not have a complaints management and resolution system in place that ensures that complaints are welcomed, acknowledged, respected and well-managed.

6. The Commission holds information that the Provider does not employ workers who hold the relevant qualifications for their roles. The FFG website (www.forwardfocusedgroup.com.au) in its 'Our Team' section stated that Ms Sally See was employed by Forward Focused Group as a Counsellor. Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au). The Commission does not hold any records of contact information or worker screening conducted for Ms See.

7. The Commission holds information that the Provider is not acting with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions. Across June and July 2022, participants including Corina Abraham, Sarah-Jane Clulow, and Alexsis Bott all sought to amend or cease service agreements with the Provider. The written email engagement with the Provider indicated non-compliance with the National Disability Insurance Scheme (Code of Conduct) Rules 2018 and included both veiled and direct threats, bullying and harassment. By way of example,

    a. Across May and June 2022, the Provider attempted to obtain control of participant funds and participants supports for participant Alexsis Bott. When the participant confirmed, in writing that they didn't want to take the action to release their funds from the existing manager the Founding Executive Director writes "we will be terminating your services with us effective immediately".

    b. Series of emails 24 June 2022 to 19 June 2022 regarding participant Sarah-Jane Clulow advising a four week notice for service termination. The emails show that the participant was seeking review of an invoice for services not received.

    c. On 1 July 2022, the Provider responds to an account statement from a supplier stating that, "we will no longer pay any invoices for Sarah. She has terminated her contract with us."

    d. Series of emails 15 June 2022 to 19 June 2022 regarding participant Corina Abraham ceasing some services with Hybrid Hive. The participant seeks to meet to discuss their concerns. By email dated 19 June, the Provider through Vida Reid purports to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS.

    e. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, provides that the support worker has a non-compete and non-disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had "come to us in good faith…I would have said okay."

    f. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, "I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".

8. The Commission holds information that the Provider is not acting with integrity, honesty and transparency.

9. It is alleged that Forward Focused Group knowingly submitted false claims for payments to the National Disability Insurance Scheme (Scheme), with the intention of dishonestly causing a loss to another person, namely the NDIA, a Commonwealth entity. The Commission is aware of questions about invoices raised against multiple participants.

10. The Commission holds information about participants Tiffany Rose and Andrew Hahn on dates known between 26 November 2021 and 14 June 2022, which show that the Provider generated invoices that did not match the services provided, or were generated without the necessary Plans or Services Agreements in place.

11. The Commission also holds information, through emails dated 3 May and 9 May 2022, which show that the Founding Executive Director is withholding information from other staff of the Provider on potentially fraudulent invoices. By way of example,

    a. Internal email dated 3 May 2022 from former employee to the Chief Financial Officer raising questions regarding an invoice for Support Coordination services for participant that Forward Focused Group had not provided.

12. The Commission holds records of correspondence between the Provider and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for the Provider to immediately terminate engagements with participants. By way of example,

    a. Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a Forward Focused Group-managed property due to “serious misconduct” and “failing to pay the fortnightly lodging fee”. The Commission holds a record of an email from the advocate of the participant dated 27 March 2022, requesting that “unsubstantiated threats of eviction” from the Provider cease.

13. The Commission holds information that the Provider has not taken all reasonable steps to prevent and respond to exploitation of people with disability.

14. The Commission holds information that the Provider is seeking to act as both the service provider and the authorized person on behalf of a participant to engage with the NDIA in relation to support provision and funding decisions. By way of example,

    a. The Commission holds a record of a Forward Focused Group document titled ‘FM Consent Third Party to Act’ which provides ongoing consent for any Forward Focused staff member (contact Vida Reid), which includes consent to request review of NDIA decisions and manage complaints made by participant Meghan Goodwin.

15. The nature of the information held by the Commission strongly suggests to me that the Provider has contravened, is contravening, or is proposing to contravene the NDIS Act (as provided for by section 73P(1)(a) of the NDIS Act).

16. The NDIS Act s73J requires providers to comply with registration conditions. It is a condition of registration that providers comply with the Rules. The *National Disability Insurance Scheme*

(Provider Registration and Practice Standards) Rules 2018 (the Practice Standards Rules) section 7(1) requires providers to be registered to provide Specialist Disability Accommodation (SDA).

17. The Provider is clearly advertising the provision of supports that you are not registered to supply.

18. The allegations and information held by the Commission indicate a significant amount of false claims against the Scheme, that could have otherwise have been directed to fund essential supports and services to people with disability.

19. The Provider's practice of billing multiple NDIS participants for supports and services not provided compromised the integrity of the Scheme and deprived these NDIS participants of receiving necessary supports and services that they relied upon and were entitled to receive.

20. The information available to the Commission regarding the way in which the Provider handles complaints also suggests that the Provider has failed its obligation under the NDIS Practice Standards to implement a complaints management and resolution system that ensures that complaints made by all parties are welcomed, acknowledged, respected and well-managed. My view, based on the information available to the Commission, is that Provider does not provide a supportive environment for any person who makes complaints.

Submissions

21. The Commission received a submission on 30 November 2022 (the extended submission date).

22. Your submission notes that a request for further time and further information were not responded to however, the Commission did respond to this request. This is evidenced by the Commission's acceptance of the submission on 30 November 2022 (the extended submission date).

23. Your submission responds to a number of facts and information we raised in the notice of intention to the provider dated 19 October 2022.

24. Your submission confirms that the Provider held relevant information in relation to the issues identified.

25. Your submission denies all allegations.

26. I have carefully considered the information provided in your submissions alongside previous information outlined in the letter dated 19 October 2022. I note your submission does not provide the Commission with additional evidence to support your position.

27. As part of my considerations I am obliged to consider the NDIS Act. Section 3 of the NDIS Act contains the objects of the NDIS Act, which includes:

    a. Supporting the independence and social and economic participation of people with disability.

    b. Enabling people with disability to exercise choice and control in the pursuit of their goals and the panning and delivery of their supports.

NDIS Quality and Safeguards Commission

c. Protecting and preventing people with disability from experiencing harm arising from poor quality or unsafe supports or services provided under the National Disability Insurance Scheme.

28. In giving effect to the objects of the NDIS Act, including those outlined above, section 3(3)(b) requires regard to be had to the need to ensure financial sustainability of the National Disability Insurance Scheme (NDIS). Similarly, as set out in NDIS Act section 4(17) it is the intention of the Parliament that the Commissioner, amongst others, have regard to the need to ensure financial sustainability of the NDIS in performing functions and exercising powers under the NDIS Act.

29. As a registered NDIS provider, Forward Focused Group Pty Ltd, elected to participate in a national scheme aimed at assisting those who have permanent and significant disability, and providing those participants with choice and control over their supports and services, and their selection of the providers of those supports and services.

30. My view is that the need to protect the interests of people with disability, who may be particularly vulnerable, and ensure they are kept safe, outweighs the Provider's interest in continuing to provide supports or services to people with disability.

31. The matters set out above demonstrates conduct that falls well below the standard and quality of care expected from NDIS providers when providing supports or services to people with disability.

32. The information before me in relation to the protracted length of time over which this conduct took place and continued as well as the instances of similar misconduct against multiple NDIS participants suggests that Provider's conduct was systemic in nature.

33. I am also of the view that allowing the Provider to continue providing supports or services to people with disability would jeopardise public trust in the NDIS.

34. I consider the alleged conduct of the Provider is entirely relevant to my assessment of the Provider's suitability to be involved in the provision of supports or services to NDIS participants, in considering the objects and principles of the NDIS Act. This is particularly the case as the parties impacted by the Provider's actions are NDIS participants.

35. Having weighed all the evidence at hand I reasonably believe that the Provider, has contravened, is contravening, or is proposing to contravene, the Act.

36. I am therefore satisfied that the power to revoke the registration is available to me and that it is, in all of the circumstances, a risk responsive and proportionate response.

Philip Halton
Branch Head, Operations – North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

NDIS Quality and Safeguards Commission

Our ref: 4-HOIWASG

Forward Focused Group Pty Ltd
c/o Tom and Co Legal
Att: Director
Unit 2 Number 210 Jull Street
Armadale WA 6112

By email to: info@tomandcolegal.com.au; feedback@ffg.net.au;

Dear Director,

Notice of Banning Order under section 73ZN(1)(a) of the *National Disability Insurance Scheme Act 2013* with immediate effect.

I enclose a banning order made under section 73ZN of the National Disability Insurance Scheme Act 2013 (NDIS Act). I have made the order on the basis that I have today revoked the registration of Forward Focused Group Pty Ltd ACN 643 878 639 ("the Provider"), in accordance with section 73ZN(1)(a) of the NDIS Act.

This banning order prohibits the Provider from being involved in the provision of supports or services to people with disability for a period of ten (10) years.

You should refer to the enclosed document, which clearly set out the banning order and reasons for my decision to make such an order.

Please note that the banning order takes effect on **5:30pm (AWST) on Tuesday 20 December 2022**.

Review under section 100 of the NDIS Act

You may request a review of my decision to make a banning order. You may do so within three months from the date the order is served on you.

Any application you may make for an internal review would be dealt with by someone other than me, the original decision-maker.

Should you wish to request a review of my decision, you may make the request in writing and email it to review@ndiscommission.gov.au or send it by post, addressed to:

Branch Head, Operations - North Central West
NDIS Quality and Safeguards Commission
PO Box 2862
BRISBANE QLD 4001

Alternatively, you may telephone my office on 1800 035 544 to request a review of the decision or arrange to make the request in person.

Once any review of the decision has been finalised by the reviewer, you may also seek a further review of the decision by the Administrative Appeals Tribunal as provided for under section 103 of the NDIS Act.

In addition to applying for a review of this decision under section 100 as outlined above, you may apply for a variation or revocation of the banning order under section 73ZO of the NDIS Act. The application must be in writing and explain why you believe the banning order should be revoked or varied. If you are requesting a variation, you should also provide details of the type of variation requested.

Any decision made pursuant to an application under section 73ZO is itself a reviewable decision under section 100.

Non-compliance with the banning order

Please note that engaging in conduct that breaches the banning order that has been made against you is a contravention of section 73ZN(10) of the NDIS Act, for which there is a civil penalty of up to $222,000 for an individual.

NDIS Provider Register

Section 73ZS of the NDIS Act requires the Commissioner to maintain the NDIS Provider Register which includes certain information about NDIS providers and other persons. Relevant information about the banning order will be included on the NDIS Provider Register and published on the NDIS Commission's website.

Yours sincerely

Philip Halton
Branch Head, Operations – North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

Enc. Attachment A – Banning Order
Attachment B – Statement of Reasons

NDIS Quality and Safeguards Commission

NATIONAL DISABILITY INSURANCE SCHEME ACT 2013 (Cth)

SECTION 73ZN

BANNING ORDER

I, Philip Halton, give this Banning Order to Forward Focused Group Pty Ltd on the basis that, I have revoked the registration of the person as a registered NDIS provider. (NDIS Act s73ZN(1)(a)).

Pursuant to section 73ZN(1)(a) of the NDIS Act, I prohibit Forward Focused Group Pty Ltd from providing supports and services, directly or indirectly, to NDIS-funded participants for a period of **ten (10) years** from the date that this order takes effect.

My reasons for making this order are set out in the enclosed statement of reasons.

This order takes effect on **Tuesday, 20 December 2022 at 5:30pm (AWST).**

Philip Halton
Branch Head, Operations – North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

Enc. Attachment B

NDIS Quality and Safeguards Commission

NATIONAL DISABILITY INSURANCE SCHEME ACT 2013 (Cth)

SECTION 73ZN BANNING ORDER- STATEMENT OF REASONS

This is a statement of reasons for the making of a Banning Order on 20 December 2022 against Forward Focused Group Pty Ltd, under section 73ZN of the *National Disability Insurance Scheme Act 2013* (NDIS Act).

Procedural steps

I refer to my letter dated 19 October 2022 advising of the proposed revocation of the registration of Forward Focused Group Pty Ltd ACN 643 878 639 ("the Provider") and the relevant facts and matters that I have considered in reaching the view the Provider has contravened, is contravening, or is likely to contravene the NDIS Act.

I also gave the Provider the opportunity to make submissions about this due no later than 5.00pm (AWST) on 16 November 2022.

I received a request for an extension to that timeframe and granted additional time for submissions through to 30 November 2022 (the extended submission date).

I acknowledge the submission sent by Mr Tom Monks, Principal Director, Tom & Co Legal Pty Ltd to the Commission on 30 November 2022. The Commission has carefully considered the contents of the submission to determine whether to revoke the registration of the Provider.

As detailed in a letter of **20 December 2022**, I have made a decision to revoke the registration of the Provider, commencing from the date of the notice.

As I have revoked the registration of the Provider, I have made the decision to make a Banning Order against the Provider, as provided for by section 73ZN(1)(a) of the NDIS Act.

The relevant facts and information held by the Commission in forming the view to revoke the registration and make a Banning Order against the Provider are set out below.

Relevant facts and information

1. Forward Focused Group Pty Ltd is a registered NDIS provider, registration 4-4GHG-1073.
2. Forward Focused Group Pty Ltd (the Provider) is registered to provide the following services:

   Item 8 – Assistance with travel/transport arrangements; and

   Item 20 – Household tasks.

3. It is alleged that the Provider is providing supports to participants that the provider is not registered to provide. The Forward Focused Group website (www.forwardfocusedgroup.com.au) in its 'Service Offerings' offered SDA (Specialist Disability Accommodation) at three suburb locations. The Forward Focused Group Facebook page posted on at least two occasions 18 July 2022 and 28 September 2022 with the SDA service offering.
4. Since September 2021, the Commission has received over 30 complaints regarding the safety and quality of supports provided by Forward Focused Group. The Commission also holds information that suggests that the Provider does not support individuals to raise any complaints they may have directly with the provider, without fear of retaliation from the Provider or the key personnel.

5. This information strongly indicates that the Provider does not have a complaints management and resolution system in place that ensures that complaints are welcomed, acknowledged, respected and well-managed.
6. The Commission holds information that the Provider does not employ workers who hold the relevant qualifications for their roles. The FFG website (www.forwardfocusedgroup.com.au) in its 'Our Team' section stated that Ms Sally See was employed by Forward Focused Group as a Counsellor. Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au). The Commission does not hold any records of contact information or worker screening conducted for Ms See.
7. The Commission holds information that the Provider is not acting with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions. Across June and July 2022, participants including Corina Abraham, Sarah-Jane Clulow, and Alexsis Bott all sought to amend or cease service agreements with the Provider. The written email engagement with the Provider indicated non-compliance with the National Disability Insurance Scheme (Code of Conduct) Rules 2018 and included both veiled and direct threats, bullying and harassment. By way of example,
    a. Across May and June 2022, the Provider attempted to obtain control of participant funds and participants supports for participant Alexsis Bott. When the participant confirmed, in writing that they didn't want to take the action to release their funds from the existing manager the Founding Executive Director writes "we will be terminating your services with us effective immediately".
    b. Series of emails 24 June 2022 to 19 June 2022 regarding participant Sarah-Jane Clulow advising a four week notice for service termination. The emails show that the participant was seeking review of an invoice for services not received.
    c. On 1 July 2022, the Provider responds to an account statement from a supplier stating that, "we will no longer pay any invoices for Sarah. She has terminated her contract with us."
    d. Series of emails 15 June 2022 to 19 June 2022 regarding participant Corina Abraham ceasing some services with Hybrid Hive. The participant seeks to meet to discuss their concerns. By email dated 19 June, the Provider through Vida Reid purports to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS.
    e. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, provides that the support worker has a non-compete and non-disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had "come to us in good faith…I would have said okay."
    f. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, "I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".
8. The Commission holds information that the Provider is not acting with integrity, honesty and transparency.
9. It is alleged that Forward Focused Group knowingly submitted false claims for payments to the National Disability Insurance Scheme (Scheme), with the intention of dishonestly causing a loss to another person, namely the NDIA, a Commonwealth entity. The Commission is aware of questions about invoices raised against multiple participants.
10. The Commission holds information about participants Tiffany Rose and Andrew Hahn on dates known between 26 November 2021 and 14 June 2022, which show that the Provider generated

invoices that did not match the services provided, or were generated without the necessary Plans or Services Agreements in place.

11. The Commission also holds information, through emails dated 3 May and 9 May 2022, which show that the Founding Executive Director is withholding information from other staff of the Provider on potentially fraudulent invoices. By way of example,
    a. Internal email dated 3 May 2022 from former employee to the Chief Financial Officer raising questions regarding an invoice for Support Coordination services for participant that Forward Focused Group had not provided.
12. The Commission holds records of correspondence between the Provider and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for the Provider to immediately terminate engagements with participants. By way of example,
    a. Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a Forward Focused Group-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". The Commission holds a record of an email from the advocate of the participant dated 27 March 2022, requesting that "unsubstantiated threats of eviction" from the Provider cease.
13. The Commission holds information that the Provider has not taken all reasonable steps to prevent and respond to exploitation of people with disability.
14. The Commission holds information that the Provider is seeking to act as both the service provider and the authorized person on behalf of a participant to engage with the NDIA in relation to support provision and funding decisions. By way of example,
    a. The Commission holds a record of a Forward Focused Group document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward Focused staff member (contact Vida Reid), which includes consent to request review of NDIA decisions and manage complaints made by participant Meghan Goodwin.
15. The nature of the information held by the Commission strongly suggests to me that the Provider has contravened, is contravening, or is proposing to contravene the NDIS Act (as provided for by section 73P(1)(a) of the NDIS Act).
16. The NDIS Act s73J requires providers to comply with registration conditions. It is a condition of registration that providers comply with the Rules. The *National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018* (the Practice Standards Rules) section 7(1) requires providers to be registered to provide Specialist Disability Accommodation (SDA).
17. The Provider is clearly advertising the provision of supports that you are not registered to supply.
18. The allegations and information held by the Commission indicate a significant amount of false claims against the Scheme, that could have otherwise have been directed to fund essential supports and services to people with disability.
19. The Provider's practice of billing multiple NDIS participants for supports and services not provided compromised the integrity of the Scheme and deprived these NDIS participants of receiving necessary supports and services that they relied upon and were entitled to receive.
20. The information available to the Commission regarding the way in which the Provider handles complaints also suggests that the Provider has failed its obligation under the NDIS Practice Standards to implement a complaints management and resolution system that ensures that complaints made by all parties are welcomed, acknowledged, respected and well-managed. My view, based on the information available to the Commission, is that Provider does not provide a supportive environment for any person who makes complaints.

Submissions

21. The Commission received a submission on 30 November 2022 (the extended submission date).
22. Your submission notes that a request for further time and further information were not responded to however, the Commission did respond to this request. This is evidenced by the Commission's acceptance of the submission on 30 November 2022 (the extended submission date).
23. Your submission responds to a number of facts and information we raised in the notice of intention to the provider dated 19 October 2022.
24. Your submission confirms that the Provider held relevant information in relation to the issues identified.
25. Your submission denies all allegations.
26. I have carefully considered the information provided in your submissions alongside previous information outlined in the letter dated 19 October 2022. I note your submission does not provide the Commission with additional evidence to support your position.
27. As part of my considerations I am obliged to consider the NDIS Act. Section 3 of the NDIS Act contains the objects of the NDIS Act, which includes:
    a. Supporting the independence and social and economic participation of people with disability.
    b. Enabling people with disability to exercise choice and control in the pursuit of their goals and the panning and delivery of their supports.
    c. Protecting and preventing people with disability from experiencing harm arising from poor quality or unsafe supports or services provided under the National Disability Insurance Scheme.
28. In giving effect to the objects of the NDIS Act, including those outlined above, section 3(3)(b) requires regard to be had to the need to ensure financial sustainability of the National Disability Insurance Scheme (NDIS). Similarly, as set out in NDIS Act section 4(17) it is the intention of the Parliament that the Commissioner, amongst others, have regard to the need to ensure financial sustainability of the NDIS in performing functions and exercising powers under the NDIS Act.

29. As a registered NDIS provider, Forward Focused Group Pty Ltd, elected to participate in a national scheme aimed at assisting those who have permanent and significant disability, and providing those participants with choice and control over their supports and services, and their selection of the providers of those supports and services.

30. My view is that the need to protect the interests of people with disability, who may be particularly vulnerable, and ensure they are kept safe, outweighs the Provider's interest in continuing to provide supports or services to people with disability.

31. The matters set out above demonstrates conduct that falls well below the standard and quality of care expected from NDIS providers when providing supports or services to people with disability.
32. The information before me in relation to the protracted length of time over which this conduct took place and continued as well as the instances of similar misconduct against multiple NDIS participants suggests that Provider's conduct was systemic in nature.
33. I am also of the view that allowing the Provider to continue providing supports or services to people with disability would jeopardise public trust in the NDIS.

34. I consider the alleged conduct of the Provider is entirely relevant to my assessment of the Provider's suitability to be involved in the provision of supports or services to NDIS participants, in considering the objects and principles of the NDIS Act. This is particularly the case as the parties impacted by the Provider's actions are NDIS participants.
35. Having weighed all the evidence at hand I reasonably believe that the Provider, has contravened, is contravening, or is proposing to contravene, the Act.
36. I am therefore satisfied that the power to revoke the registration is available to me and that it is, in all of the circumstances, a risk responsive and proportionate response. I am therefore also satisfied that the power to issue a Banning Order is available to me.
37. For the avoidance of doubt, the Banning Order will prevent the Provider from having any involvement whether directly or indirectly in the delivery, coordination and management of NDIS-funded supports and services to people with disability.
38. I consider that a timeframe of **10 years** is appropriate and will provide a strong level of protection for people with disability.

Philip Halton
Branch Head, Operations – North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

NDIS Quality and Safeguards Commission

Forward Focused Group Pty Ltd
Unit 2 Number 210 Jull Street
Armadale WA 6112

Att: Tom Monks, Principal Director, Tom & Co Legal Pty Ltd

By email: info@tomandcolegal.com.au

Dear Mr Monks,

Thank you for your letter dated 31 October 2022 advising that you act for Forward Focused Group Pty Ltd and Ms Vida Reid. I note that you are seeking additional information and additional time to provide submissions in reply to the Commission's notices of intention to (i) revoke the registration of, and then issue a banning order upon, Forward Focused Group PL; and (ii) issue a banning order upon Ms Vida Reid. Both notices were issued on 19 October 2022.

Turning to your first request, the Commission is satisfied that our notices of 19 October adequately disclosed the reasons and information that gave rise to our intentions.

Secondly, your letter seeks an "extension of time". I have considered your request for additional time. I have decided to grant your Clients an additional fourteen (14) days from the original due date of 5:00pm (AWST) on 16 November 2022. I will accept submissions made by your Clients on the proposed (i) revocation of registration of, and then issuance of a banning order upon, Forward Focused Group PL; and (ii) issuance of a banning order upon Ms Vida Reid, up until **5:00pm (AWST) on 30 November 2022**.

As advised in the notices of intention, no decisions have yet been finalised. The Commission will closely consider all submissions received prior to this new deadline but, consistent with our original notice, will progress to making final decisions even if submissions are not provided.

In relation to the suspension of registration of Forward Focused Group Pty Ltd (4-4GHG-1073) this commenced on 19 October 2022 (the date of the Notice). The current suspension is in effect until 19 November 2022. The provisions of the NDIS Act do not provide for submissions to be made upon a decision to suspend the registration of a provider but, rather, make provision for a review of such a decision under s.100 of that Act. I understand your client, Ms Reid, has lodged an application for such a review on Friday 11 November 2022.

If you have questions about this letter, please email WACompliance@ndiscommission.gov.au.

Yours sincerely

Philip Halton
Branch Head, Operations – North Central West
15 November 2022

NDIS Quality and Safeguards Commission

Evidence Matrix

Breach of NDIA Act s73J

S73F(2)(c) > 73T(1) > Rules > NDIS Practice Standards > Schedule 8

Forward Focus Group Pty Ltd, Vida Reid

NDIS Act 2013	*National Disability and Insurance Scheme (Provider registration and Practice Standards) Rules 2018*	Element	Information/evidence/source	Reference Location
Division 2—Registered NDIS providers **73J Registered NDIS providers must comply with conditions of registration** A person contravenes this section if the person: (a) is a registered NDIS provider; and (b) breaches a condition to which the registration of the person is subject Civil penalty: 250 penalty units **73F Registration is subject to conditions** (2) The registration of a person as a registered NDIS provider is subject to the following conditions: … (c) a condition that the person comply with all applicable standards and other requirements of the NDIS Practice Standards;	Schedule 8 **4 Complaints management and resolution** (1) Each participant has knowledge of and access to the provider's complaints management and resolution system. (2) Complaints are welcomed, acknowledged, respected and well-managed. … **6 Human resource management** Each participant's support needs are met by workers who are competent in relation to their role, hold relevant qualifications and have relevant expertise and experience to provide person-centred support.	Registered NDIS Provider	NDIS Commission provider register displayed on the website. COS provider profile. Printout and Screenshots included.	Att 4 (D22/169539) – Provider Register External Att 38 (D22/184884) – COS Provider Profile

41

T5 1

NDIS Act 2013	*National Disability and Insurance Scheme (Provider registration and Practice Standards) Rules 2018*	Element	Information/evidence/source	Reference Location
		Breaches a condition – Complaints management and resolution	Commission records show that the Commission received 32 complaints in relation to Forward Focused Group from 13 April 2021 to 10 August 2022. The Commission has undertaken an analysis of complaints and identified 11 complaints whereby the participants lodging the complaints have stated that they wish to remain anonymous, or have faced or fear repercussions from raising their complaints directly with Ms Reid or Forward Focused Group (Att 14). The reasons stated by the complainants for not reporting their complaints directly with Ms Reid or Forward Focused Group indicate that Ms Reid and Forward Focused Group are not ensuring that complaints are welcomed, acknowledged, respected and well-managed. Example: Complaint #4-38279458621 PPT is scared to report to Police until she is able to find alternative accommodation due to staff and owner aiming their attention at her for reporting issues. Complaint [redacted] "I would like to remain anonymous due to security reasons as I'm scared for my family at this moment in time with most recent events."	Att 14 (D22/169610) – Summary of Complaints
		Breaches a condition – Human Resource Management	Therapy team, Sally See (Masters in Sexology and specialises in couples-therapy) [redacted] This is supported by a search conducted on the FFG website (Att 25). According to searches conducted on 13 October 2022, Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au). (Att 32).	Att 6A (D22/184618) – Statement of Reasons Att 9 (D22/186518) – Sally See FFG Counsellor Att 25 (D22/184648) – FFG Website Screenshot Att 32 (D22/184671) – Searches for Counsellor Qualifications

NDIS Act 2013	*National Disability and Insurance Scheme (Provider registration and Practice Standards) Rules 2018*	Element	Information/evidence/source	Reference Location
			As at 14 October 2022 there is no record of a "Sally See" in the worker screening or contact information held by the Commission.	

43

T5[3]

NDIS Quality and Safeguards Commission

Evidence Matrix
Breach of NDIS Act s73B
Forward Focus Group Pty Ltd

NDIS Act 2013	Elements of Breach	Information/Evidence/Other	Reference Location
73B Requirement to be a registered NDIS provider (1) The National Disability Insurance Scheme rules may require that specified classes of supports provided under participants' plans are to be provided only by persons who are registered under section 73E to provide those classes of supports. Note: See also subsection 33(6), which provides that, if the funding for supports under a plan is managed by the Agency, supports are to be provided only by a registered NDIS provider. (2) A person must not provide a support under a participant's plan if: (a) the National Disability Insurance Scheme rules require the person to be registered to provide the support under the plan; and (b) the person is not so registered. Civil penalty: 250 penalty units.	Rules require registration	***National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018*** **7 Classes of supports for which NDIS providers must be registered** (1) A person must be registered under section 73E of the Act to provide specialist disability accommodation under a participant's plan.	National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018 (legislation.gov.au)
	Person is not so registered	Forward Focused Group Pty Ltd. Internal and external facing information about registration status. Including registration groups: • Household tasks • Assist – travel/transport	Att 6A (D22/184618) – Statement of Reasons Att 4 (D22/169539) – Provider Register External Att 38 (D22/184884) – COS Provider Profile

44

T6[1]

NDIS Act 2013	Elements of Breach	Information/Evidence/Other	Reference Location
	Services offered	• The Forward Focused Group website indicates that they are a registered NDIS provider (Att 28). The website also indicates that they can offer SDA (Att 26) at three different locations: Safety Bay, Northbridge and Stirling (Att 27 and 28). • The Forward Focus Group website links to a facebook page (Att 33). • Facebook post of 28 September 2022 at 12:43 states FFG has four SDA vacancies and provides contact details for people seeking further information. • Facebook post 18 July 2022 (Att 39) is promoting their ability to offer a wide range of accommodation including SDA. • The Hive website (Att 29) includes information about home and living support services provided (Att31). • The website states the locations as Safety Bay, Northbridge and Cottesloe. • The Hive website (Att 29) links to a facebook page (Att 35). • Facebook post five days prior to 14 October 2022 (Att 35) the business is promoting their ability to offer a wide range of accommodation including SDA. • Facebook post 5 September 2022 (Att 36) the business is promoting their ability to offer a wide range of accommodation including SDA. Accommodation at Safety Bay, Cottesloe and Northbridge	Att 26 (D22/184649) – Service Offerings FFG Website Att 27 (D22/184650) – SDA Properties Screenshot Att 28 (D22/184651) – SDA Properties and Registered Provider Statement Screenshot Att 29 (D22/184662) – Hybrid Hive website screenshot Att 31 (D22/184665) – Hybrid Hive Service Offering screenshot Att 33 (D22/184702) – FFG Facebook Screenshot Offering SDA Att 35 (D22/184706) – Hybrid Hive Facebook Screenshot Offering SDA Att 36 (D22/184707) – Hybrid Hive Facebook Screenshot Offering SDA Att 39 (D22/184915) – FFG Facebook Screenshot Offering SDA

NDIS Quality and Safeguards Commission

Our ref: 4-HOIWASG

Forward Focused Group Pty Ltd
Att: Chief Executive Officer, Vida Reid
Unit 2 Number 210 Jull Street
Armadale WA 6112

Copy by email to: feedback@ffg.net.au; vida@ffg.net.au

Notice of Suspension of your provider registration (4-4GHG-1073) under section 73N of the *National Disability Insurance Scheme Act 2013* with immediate effect.

The *National Disability Insurance Scheme Act 2013* (NDIS Act) gives me, as the Commissioner's delegate, the power to suspend the registration of a registered NDIS provider for a specified period, no longer than thirty (30) days.

I have made the decision to suspend the registration of Forward Focused Group Pty Ltd, registration number 4-4GHG-1073, for a period of 30 days, **commencing from the date of this notice**.

I have suspended your registration as a registered NDIS provider because I reasonably believe that you have contravened sections 73V (the NDIS Code of Conduct), 73B (Requirement to be a registered NDIS provider) and 73J (compliance with conditions of your registration) of the NDIS Act, as provided for by section 73N(1)(a) of the NDIS Act.

The suspension means your registration ceases to have effect until 19 November 2022. The reasons for my decision to suspend your registration are attached to this notice (**Annexure A**).

NDIS Provider Register

Section 73ZS of the NDIS Act requires the Commissioner to maintain the NDIS Provider Register which must include certain information for each person who is a registered NDIS provider. This includes if the registration of a person is suspended, information about the suspension. As I have decided to suspend your registration with immediate effect, this information will be included on the NDIS Provider Register, and published online.

Review under section 100 of the NDIS Act

You may request a review of my decision to suspend your registration within 3 months from the date that the suspension takes effect.

Any application you may make for an internal review would be dealt with by someone other than me, the original decision-maker.

Should you wish to request a review of my decision, you may make the request in writing and email it to review@ndiscommission.gov.au or send it by post, addressed to:

Branch Head, Operations - North Central West
NDIS Quality and Safeguards Commission
PO Box 2862
BRISBANE QLD 4001

Alternatively, you may telephone my office on (07) 3237 6559 to request a review of the decision or arrange to make the request in person.

Once any review of the decision has been finalised by the reviewer, you may also seek a further review of the decision by the Administrative Appeals Tribunal as provided for under section 103 of the NDIS Act.

Non-compliance with the suspension

Please note that engaging in conduct that breaches the suspension of registration may be a contravention of section 73B of the NDIS Act, insofar as the NDIS rules may require that specified classes of supports provided under a participant's plans be provided only by NDIS providers who are registered to provide those classes of supports. A contravention of section 73B attract a civil penalty up to $55,500 for individuals.

Philip Halton
Branch Head, Operations - North Central West
NDIS Quality and Safeguards Commission

19 October 2022

Reasons for the decision to suspend your registration

Legislative provisions

Section 73J of the NDIS Act provides that registered NDIS providers must comply with conditions of registration. The conditions they are subject to include those provided at section 73F of the NDIS Act.

Section 73F of the NDIS Act states that the registration of a person as a registered NDIS provider is subject to a number of conditions. These conditions include:

- Section 73F(2)(b) - a condition that the person comply with all applicable requirements of the NDIS Code of Conduct;
- Section 73F(2)(c) - a condition that the person comply with all applicable standards and other requirements of the NDIS Practice Standards;

Section 73T(1) of the NDIS Act states that the National Disability Insurance Scheme rules may make provision for or in relation to standards concerning the quality of supports or services to be provided by registered NDIS providers.

NDIS Code of Conduct

The NDIS Code of Conduct is set out in section 6 of the *National Disability Insurance Scheme (Code of Conduct) Rules 2018* (Code of Conduct Rules). Relevantly, Code-covered persons must, when providing supports or services to people with disability:

- act with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions (section 6(a));
- act with integrity, honesty and transparency (section 6(d));
- take all reasonable steps to prevent and respond to all forms of violence against, and exploitation, neglect and abuse of, people with disability (section 6(f)).

Practice Standards

Forward Focused Group Pty Ltd is registered to provide the following classes of supports under the *National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018* (the Practice Standards Rules):

- Item 8 – Assistance with travel/transport arrangements
- Item 20 – Household tasks.

In order to remain registered for the above classes of supports, Forward Focused Group Pty Ltd must comply with the Practice Standards outlined in Schedule 8 of the Practice Standards Rules.

Relevant facts and circumstances

I have considered the following matters that give rise to the suspension:

1. Forward Focused Group Pty Ltd is a registered NDIS provider, registration number 4-4GHG-1073, trading as 'Forward Focused' (ABN 98643878639).

2. Forward Focused Group Pty Ltd is registered to provide the following services:

- Item 8 – Assistance with travel/transport arrangements; and
- Item 20 – Household tasks.

3. It is alleged that Forward Focused Group is providing supports to participants that the provider is not registered to provide. The FFG website (www.forwardfocusedgroup.com.au) in its 'Service Offerings' offers SDA (Specialist Disability Accommodation) at three suburb locations. The Forward Focus Group Facebook page posted on at least two occasions 18 July 2022 and 28 September 2022 with the SDA service offering.
4. Since September 2021, the Commission has received over 30 complaints regarding the safety and quality of supports provided by Forward Focused Group. The Commission also holds information that suggests that Forward Focused Group does not support individuals to raise any complaints they may have directly with the provider, without fear of retaliation from Forward Focused Group or its directors and key personnel.
5. This information strongly indicates that Forward Focused Group does not have a complaints management and resolution system in place that ensures that complaints are welcomed, acknowledged, respected and well-managed.

6. The Commission holds information that Forward Focused Group does not employ workers who hold the relevant qualifications for their roles. The website (www.forwardfocusedgroup.com.au) in its 'Our Team' section states that Ms Sally See was employed by Forward Focused Group as a Counsellor. Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au). The Commission could not locate any records of contact information or worker screening conducted for Ms See.
7. The Commission holds information that the Provider is not acting with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions. Across June and July 2022, participants including Corina Abraham, Sarah-Jane Clulow, and Alexsis Bott all sort to amend or cease service agreements with the Provider. The written email engagement with the Provider indicated non-compliance with the National Disability Insurance Scheme (Code of Conduct) Rules 2018 and included both veiled and direct threats, bullying and harassment. By way of example,

    a. Across May and June 2022, the Provider attempted to obtain control of participant funds and participants supports for participant Alexsis Bott. When the participant confirmed, in writing that they didn't want to take the action to release their funds from the existing manager the Founding Executive Director writes "we will be terminating your services with us effective immediately".

    b. Series of emails 24 June 2022 to 19 June 2022 regarding participant Sarah-Jane Clulow advising a four week notice for service termination. The emails show that the participant was seeking review of an invoice for services not received.

    c. On 1 July 2022, the Provider responds to an account statement from a supplier stating that, ""we will no longer pay any invoices for Sarah. She has terminated her contract with us."

    d. Series of emails 15 June 2022 to 19 June 2022 regarding participant Corina Abraham ceasing some services with Hybrid Hive. The participant seeks to meet to discuss their concerns. By email dated 19 June, the Provider through Vida Reid purports to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself

and the break in trust" as the grounds. The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS.

e. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, provides that the support worker has a non compete and non disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had "come to us in good faith…I would have said okay."

f. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, "I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".

8. The Commission holds information that the Provider is not acting with integrity, honesty and transparency.

   It is alleged that Forward Focused Group are knowingly submitting false claims for payments to the National Disability Insurance Scheme (Scheme), with the intention of dishonestly causing a loss to another person, namely the NDIA, a Commonwealth entity. The Commission is aware of questions about invoices raised against multiple participants.

   The Commission holds information about participants Tiffany Rose and Andrew Hahn on dates known between 26 November 2021 and 14 June 2022, which show that the Provider generated invoices that did not match the services provided, or were generated without the necessary Plans or Services Agreements in place.

   The Commission also holds information, through emails dated 3 May and 9 May 2022, which show that the Founding Executive Director is withholding information from other staff of the Provider on potentially fraudulent invoices. By way of example,

   a. Internal email dated 3 May 2022 from a former employee to the Chief Financial Officer raising questions regarding an invoice for Support Coordination services for participant that Forward Focused Group had not provided.

   The Commission holds records of correspondence between the Provider and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for the Provider to immediately terminate engagements with participants. By way of example,

   a. Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a Forward Focused Group-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". The Commission holds a record of an email from the advocate of the participant dated 27 March 2022, requesting that "unsubstantiated threats of eviction" from the Provider cease.

9. The Commission holds information that the Provider has not taken all reasonable steps to prevent and respond to exploitation of people with disability.

   The Commission holds information that the Provider is seeking to act as both the service provider and the authorized person on behalf of a participant to engage with the NDIA in relation to support provision and funding decisions. By way of example,

   a. The Commission holds a record of a Forward Focused Group document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward

Focused staff member (contact Vida Reid), which includes consent to request review of NDIA decisions and manage complaints made by participant Meghan Goodwin.

Concerns about contraventions of the NDIS Act

1. The nature of the information held by the Commission strongly suggests to me that the Provider has contravened, is contravening, or is proposing to contravene the NDIS Act (as provided for by section 73P(1)(a) of the NDIS Act).

2. The NDIS Act 73J requires provides to comply with registration conditions. It is a condition of registration that providers comply with the Rules. The *National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018* (the Practice Standards Rules) section 7(1) requires providers to be registered to provide Specialist Disability Accommodation (SDA). The provider is clearly advertising the provision of supports that you are not registered to supply.

3. The allegations and information held by the Commission indicate a significant amount of false claims against the Scheme, that could have otherwise have been directed to fund essential supports and services to people with disability.

4. The Provider's practice of billing multiple NDIS participants for supports and services not provided compromised the integrity of the Scheme and deprived these NDIS participants of receiving necessary supports and services that they relied upon and were entitled to receive.

5. The information available to the Commission regarding the way in which the Provider handles complaints also suggests that the Provider has failed its obligation under the NDIS Practice Standards to implement a complaints management and resolution system that ensures that complaints made by all parties are welcomed, acknowledged, respected and well-managed. My preliminary view, based on the information available to the Commission, is that Provider does not provide a supportive environment for any person who makes complaints.

6. The matters set out above demonstrates conduct that falls well below the standard and quality of care expected from NDIS providers when providing supports or services to people with disability.

7. The information before me in relation to the protracted length of time over which this alleged conduct took place and continued as well as the instances of similar misconduct against multiple NDIS participants suggests that Provider's conduct was systemic in nature.

8. My preliminary view is that the need to protect the interests of people with disability, who may be particularly vulnerable, and ensure they are kept safe, outweighs the Provider's interest in remaining registered in these circumstances. I am also of the view that allowing the Provider to remain registered in the circumstances would jeopardise public trust in the Scheme.

9. Having considered the functions of the Commissioner, the objects of the NDIS Act, and the need to consider the financial sustainability of the NDIS in exercising the Commissioner's powers under the NDIS Act, I consider that the registration of the Provider should be suspended under section 73N(1)(a) of the NDIS Act.

In deciding whether to suspend Forward Focused Group Pty Ltd registration, I have had regard to the following matters as required by section 73N(4) of the NDIS Act:

a) With regards to the nature, significance and persistence of any contravention, or proposed contravention, of the NDIS Act (section 73N(4)(a))

- The conduct of Forward Focused Group towards NDIS participants is very serious and warrants action to ensure Forward Focused Group cannot continue to operate as a registered NDIS provider.
- The evidence available to the Commission strongly suggests that the provider is committing fraud by charging participants for services not provided, or excessive amounts. Based on information available to the Commission, it is highly likely that both Directors of Forward Focused Group (Ms Vida Reid and Mr Simon Reid) and the Chief Financial Officer (Mr Rejaul Alam) have committed the alleged fraudulent activities.
- Information held by the Commission also indicates that Forward Focused is providing supports and services that they are not registered to provide.
- The information provided by complainants also strongly indicate a pattern of bullying, harassment and intimidating behaviour displayed by the Founding Executive Director Ms Reid towards NDIS participants.

b) With regards to the action that can be taken to address any contravention, or proposed contravention (section 73N(4)(b)):

- Given the nature of the conduct described above and noting that it appears to be intentional and recurrent, the Commission considers it unlikely that the key personnel of Forward Focused Group will fully implement any corrective action prescribed by the Commission to address the provider's contraventions.

c) With regards to the extent (if any) to which the person is conducting its affairs as a registered NDIS provider in a way that may cause harm to, or jeopardise, public trust in the NDIS (section 73N(4)(c)):

- Based on the seriousness of Forward Focused and Vida Reid's conduct and the potential impacts on NDIS participants, the Commission considers that there remains a significant risk to participants if Forward Focused Group was to continue providing supports to participants.

d) With regards to the health, safety or wellbeing of people with disability receiving supports or services from the person (section 73N(4)(d)):

- Forward Focused breaches of the NDIS Code of Conduct are particularly concerning. For the reasons detailed above, the Commission remains of the view there is an ongoing need to protect the interests, safety and wellbeing of vulnerable persons receiving disability supports and services.

e) There are no other circumstances considered relevant at this time (section 73N(4)(e)).

Having regard to all of the matters set out above, I am satisfied that Forward Focus Group Pty Ltd has contravened, is contravening, or is proposing to contravene, the NDIS Act (section 73N(1)(a)).

Taking into account the totality of the circumstances and the regulatory functions of the Commissioner I have determined that it is reasonable and proportionate to suspend the registration for a period of thirty (30) days under section 73N(1)(a) of the NDIS Act.

NDIS Quality and Safeguards Commission

Our ref: 4-HOIWASG

Forward Focused Group Pty Ltd
96 Amethyst Crescent
Mount Richon WA 6112

Attention: Ms Vida Reid, Director

By email to: feedback@ffg.net.au; vida@ffg.net.au

Opportunity to make submissions about a proposed revocation of registration under section 73P(4) of the *National Disability Insurance Scheme Act 2013* (Cth)

I am a delegate of the Commissioner for the NDIS Quality and Safeguards Commission (**the Commissioner**).

Proposed revocation of registration and banning order

Section 73P of the *National Disability Insurance Scheme Act 2013* (Cth) (**NDIS Act**) gives me, as the Commissioner's delegate, the power to revoke the registration of a person as a registered NDIS provider on the grounds listed in section 73P(1) of the NDIS Act. Relevantly, in relation to this matter, I can revoke the registration of Forward Focused Group Pty Ltd ACN 643 878 639 ("the Provider") if I am satisfied that it has contravened, is contravening, or is proposing to contravene the NDIS Act (as provided for by section 73P(1)(a) of the NDIS Act).

A banning order, which can prohibit or restrict specified activities by an NDIS provider, if the Commissioner has revoked the registration of the person as a registered NDIS provider (as provided for by section 73ZN(1)(a) of the NDIS Act.

Opportunity to make submissions

Before deciding to revoke the registration of a registered NDIS provider, the Commissioner (or a delegate of the Commissioner) must give the person an opportunity to make submissions on the matter, in accordance with section 73P(4) of the NDIS Act. A separate submission process in relation to any proposed banning order made under section 73ZN(1)(a) is not required as set out in section 73ZN(8)(b) of the NDIS Act.

The purpose of this letter is to inform the Provider of relevant facts and the matters that I have considered in reaching the view the Provider has contravened, is contravening, or is likely to contravene the NDIS Act and to give it the opportunity to make a submission about this before I make a final decision.

I have also formed the preliminary view that the Provider should be banned from providing NDIS-funded supports or services to people with disability in the event that I decide to revoke the Provider's registration.

I will not make a final decision about whether to revoke the Provider's registration as a registered NDIS provider until the Provider has had an opportunity to make submissions to me. This gives the Provider an opportunity to tell me anything that you, as a representative of the Provider, believe may be appropriate to bring to my attention, to dispute any of the facts of this matter, to comment on the seriousness of it or to put your view as to decision I propose to make. You may also wish to make comment on the banning order I am proposing.

Relevant facts and information

As a result of information provided to the Commission and the Commission's own enquiries, I understand the following:

1. Forward Focused Group is a registered NDIS provider, registration id 4-4GHG-1073, trading as 'Forward Focused' (ABN 98 643 878 639).

2. Forward Focused Group is registered to provide the following services:

   Item 8 – Assistance with travel/transport arrangements; and
   Item 20 – Household tasks.

3. It is alleged that Forward Focused Group is providing supports to participants that the provider is not registered to provide. The FFG website (www.forwardfocusedgroup.com.au) in its 'Service Offerings' offers SDA (Specialist Disability Accommodation) at three suburb locations. The Forward Focus Group Facebook page posted on at least two occasions 18 July 2022 and 28 September 2022 with the SDA service offering.

4. Since September 2021, the Commission has received over 30 complaints regarding the safety and quality of supports provided by Forward Focused Group. The Commission also holds information that suggests that Forward Focused Group does not support individuals to raise any complaints they may have directly with the provider, without fear of retaliation from Forward Focused Group or the key personnel.

5. This information strongly indicates that Forward Focused Group does not have a complaints management and resolution system in place that ensures that complaints are welcomed, acknowledged, respected and well-managed.

6. The Commission holds information that Forward Focused Group does not employ workers who hold the relevant qualifications for their roles. The FFG website (www.forwardfocusedgroup.com.au) in its 'Our Team' section states that Ms Sally See was employed by Forward Focused Group as a Counsellor. Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au). The Commission does hold any records of contact information or worker screening conducted for Ms See.

7. The Commission holds information that the Provider is not acting with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions. Across June and July 2022, participants including Corina Abraham, Sarah-Jane Clulow, and Alexsis Bott all sort to amend or cease service agreements

with the Provider. The written email engagement with the Provider indicated non-compliance with the National Disability Insurance Scheme (Code of Conduct) Rules 2018 and included both veiled and direct threats, bullying and harassment. By way of example,

a. Across May and June 2022, the Provider attempted to obtain control of participant funds and participants supports for participant Alexsis Bott. When the participant confirmed, in writing that they didn't want to take the action to release their funds from the existing manager the Founding Executive Director writes "we will be terminating your services with us effective immediately".

b. Series of emails 24 June 2022 to 19 June 2022 regarding participant Sarah-Jane Clulow advising a four week notice for service termination. The emails show that the participant was seeking review of an invoice for services not received.

c. On 1 July 2022, the Provider responds to an account statement from a supplier stating that, ""we will no longer pay any invoices for Sarah. She has terminated her contract with us."

d. Series of emails 15 June 2022 to 19 June 2022 regarding participant Corina Abraham ceasing some services with Hybrid Hive. The participant seeks to meet to discuss their concerns. By email dated 19 June, the Provider through Vida Reid purports to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS.

e. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, provides that the support worker has a non compete and non disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had "come to us in good faith…I would have said okay."

f. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, "I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".

8. The Commission holds information that the Provider is not acting with integrity, honesty and transparency.

It is alleged that Forward Focused Group are knowingly submitting false claims for payments to the National Disability Insurance Scheme (Scheme), with the intention of dishonestly causing a loss to another person, namely the NDIA, a Commonwealth entity. The Commission is aware of questions about invoices raised against multiple participants.

The Commission holds information about participants Tiffany Rose and Andrew Hahn on dates known between 26 November 2021 and 14 June 2022, which show that the Provider generated invoices that did not match the services provided, or were generated without the necessary Plans or Services Agreements in place.

The Commission also holds information, through emails dated 3 May and 9 May 2022, which show that the Founding Executive Director is withholding information from other staff of the Provider on potentially fraudulent invoices. By way of example,

a. Internal email dated 3 May 2022 from former employee to the Chief Financial Officer raising questions regarding an invoice for Support Coordination services for participant that Forward Focused Group had not provided.

The Commission holds records of correspondence between the Provider and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for the Provider to immediately terminate engagements with participants. By way of example,

a. Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a Forward Focused Group-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". The Commission holds a record of an email from the advocate of the participant dated 27 March 2022, requesting that "unsubstantiated threats of eviction" from the Provider cease.

9. The Commission holds information that the Provider has not taken all reasonable steps to prevent and respond to exploitation of people with disability.

The Commission holds information that the Provider is seeking to act as both the service provider and the authorized person on behalf of a participant to engage with the NDIA in relation to support provision and funding decisions. By way of example,

a. The Commission holds a record of a Forward Focused Group document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward Focused staff member (contact Vida Reid), which includes consent to request review of NDIA decisions and manage complaints made by participant Meghan Goodwin.

Concerns about contraventions of the NDIS Act

1. The nature of the information held by the Commission strongly suggests to me that the Provider has contravened, is contravening, or is proposing to contravene the NDIS Act (as provided for by section 73P(1)(a) of the NDIS Act).

2. The NDIS Act 73J requires provides to comply with registration conditions. It is a condition of registration that providers comply with the Rules. The *National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018* (the Practice Standards Rules) section 7(1) requires providers to be registered to provide Specialist Disability Accommodation (SDA). The provider is clearly advertising the provision of supports that you are not registered to supply.

3. The allegations and information held by the Commission indicate a significant amount of false claims against the Scheme, that could have otherwise have been directed to fund essential supports and services to people with disability.

4. The Provider's practice of billing multiple NDIS participants for supports and services not provided compromised the integrity of the Scheme and deprived these NDIS participants of receiving necessary supports and services that they relied upon and were entitled to receive.

5. The information available to the Commission regarding the way in which the Provider handles complaints also suggests that the Provider has failed its obligation under the NDIS

Practice Standards to implement a complaints management and resolution system that ensures that complaints made by all parties are welcomed, acknowledged, respected and well-managed. My preliminary view, based on the information available to the Commission, is that Provider does not provide a supportive environment for any person who makes complaints.

6. The matters set out above demonstrates conduct that falls well below the standard and quality of care expected from NDIS providers when providing supports or services to people with disability.

7. The information before me in relation to the protracted length of time over which this alleged conduct took place and continued as well as the instances of similar misconduct against multiple NDIS participants suggests that Provider's conduct was systemic in nature.

8. My preliminary view is that the need to protect the interests of people with disability, who may be particularly vulnerable, and ensure they are kept safe, outweighs the Provider's interest in remaining registered in these circumstances. I am also of the view that allowing the Provider to remain registered in the circumstances would jeopardise public trust in the Scheme.

9. Having considered the functions of the Commissioner, the objects of the NDIS Act, and the need to consider the financial sustainability of the NDIS in exercising the Commissioner's powers under the NDIS Act, I consider that the registration of the Provider should be revoked under section 73P(1)(a) of the NDIS Act.

NDIS Provider Register

Section 73ZS of the NDIS Act requires the Commissioner to maintain the NDIS Provider Register which must include certain information for each person who is a registered NDIS provider. Relevant to this matter, section 73ZS(5)(e) permits the NDIS Provider Register to include information about a former NDIS provider, including information about the revocation of a person's registration.

Should I proceed to determine to revoke the Provider's registration and make a banning order, information about the revocation and banning order will be included on the NDIS Provider Register, available on the Commission's website.

Making a submission

I have not made a final decision in respect of this matter and I will not until the Provider has had an opportunity to make submissions in writing to me. This gives the Provider the opportunity to tell me anything it believes may be appropriate to bring to my attention, to dispute any of the facts of this matter or to comment on the seriousness of it.

Section 73P(4)(b) of the NDIS Act provides that the Provider may make submissions within 28 days after receiving this notice. If no submissions are made within that time period, any revocation may take effect as early as 7 days after the end of the 28 day-period. The Provider will be notified in writing of any decision made in relation to the proposed revocation.

Any submissions the Provider may wish to make must be received by the Commission within **28 days** of its receipt of this notice unless it seeks, and is granted, an extension.

Should the Provider wish to make a submission in relation to anything contained in this letter, please do so in writing and either:

- deliver it by hand or post it to:
  NDIS Quality and Safeguards Commission
  Level 1, 200 St Georges Terrace, Perth WA 6000
  Marked for the attention of:
  Compliance Western Australia

- email it to wacompliance@ndiscommission.gov.au or

In order to have any written submission considered in my decision-making please ensure that the submission is sent to the email address, delivered to the street address or arrives at the postal address as set above, **by no later than 5:00pm (AWST) on 16 November 2022.**

If a submission is not received from the Provider by this time, I will proceed to make my final decision.

The Provider may wish to seek legal or other professional advice before deciding not to make a submission.

Yours sincerely



Philip Halton
Branch Head, Operations - North Central West
NDIS Quality and Safeguards Commission

19 October 2022

List of registered providers

Listen

NDIS Provider Register

Search for a provider's registration details by using one or more of the fields below.

You can search for a provider:

- that is currently registered, or
- whose registration has been suspended or revoked.

This register will only display providers that have registered with the NDIS Commission.

To view a list of currently registered providers, search using the Registration status 'Approved'.

Search for a registered NDIS Provider

You can search for a provider that is currently registered, or whose registration has been suspended or revoked.
To view a list of currently registered providers, search using the Registration status 'Approved'.

Provider's business name

e.g. Red cross

Provider's legal name

Provider’s ABN

Registration status

Please select

Search now

× Clear all

Forward Focused

Legal name: FORWARD FOCUSED GROUP PTY LTD.

ABN: 98643878639

Head office address: ARMADALE [NEXT TO DOME CAFE], WA, 6112

Website: https://forwardfocusedgroup.com.au

Registration status: Approved

Period of registration is in force until: 01 December 2021

Additional conditions of registration:

No additional conditions of registration.

Approved registration groups:

- Household Tasks
- Assist-Travel/Transport

Outlets

Filter outlets by state:

All states | ACT | NSW | NT | QLD | SA | TAS | VIC | WA

Showing 2 outlets in all states

Forward Focused - Head Office

Unit 2 Number 210, Jull Street, ARMADALE, WA, 6112

Phone: +610861177786

Forward Focused - West Perth Office

Unit 14 , Level 1, 4 ventnor avenue, KINGS PARK, WA, 6005

Phone: +610861177786

Previous 1 Next

Related pages

Compliance and enforcement actions (part 2 of the NDIS Provider Register)

Make a complaint

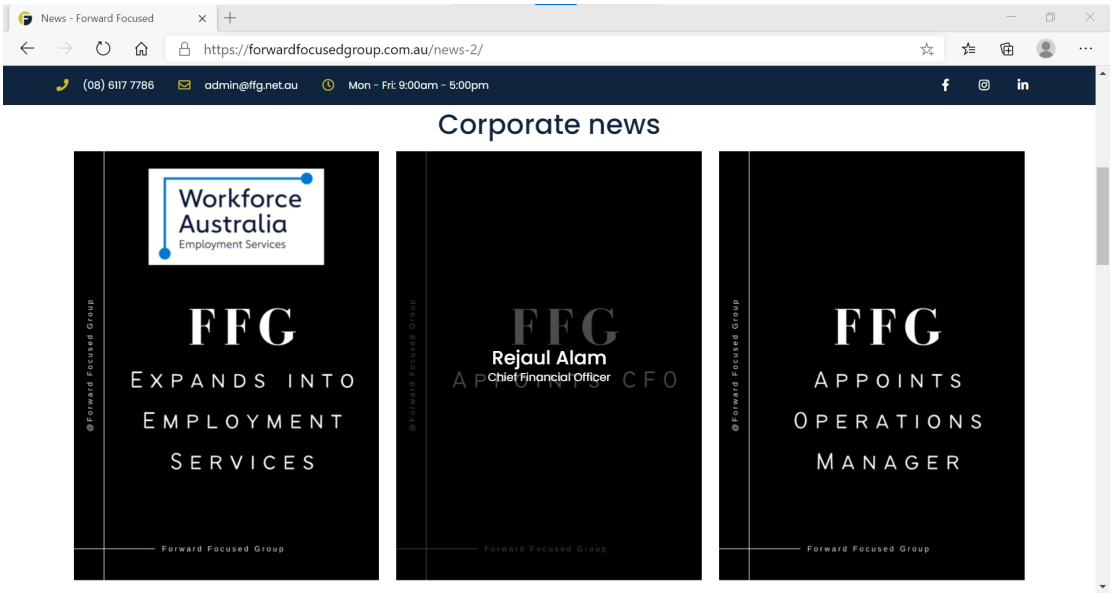
Accessibility About Resources Media centre

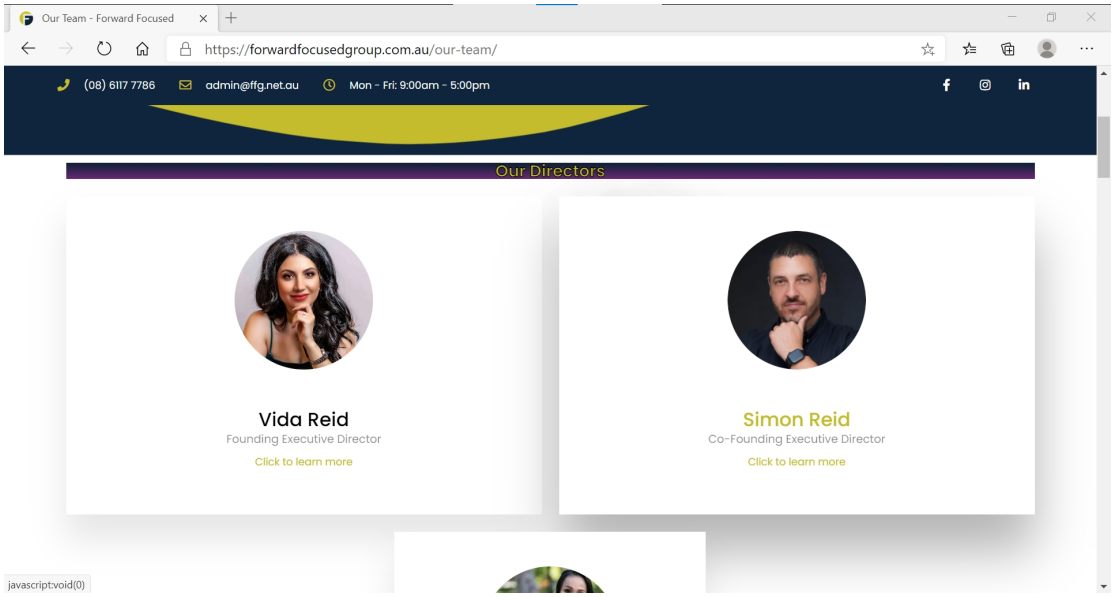
Contact us Feedback and compliments

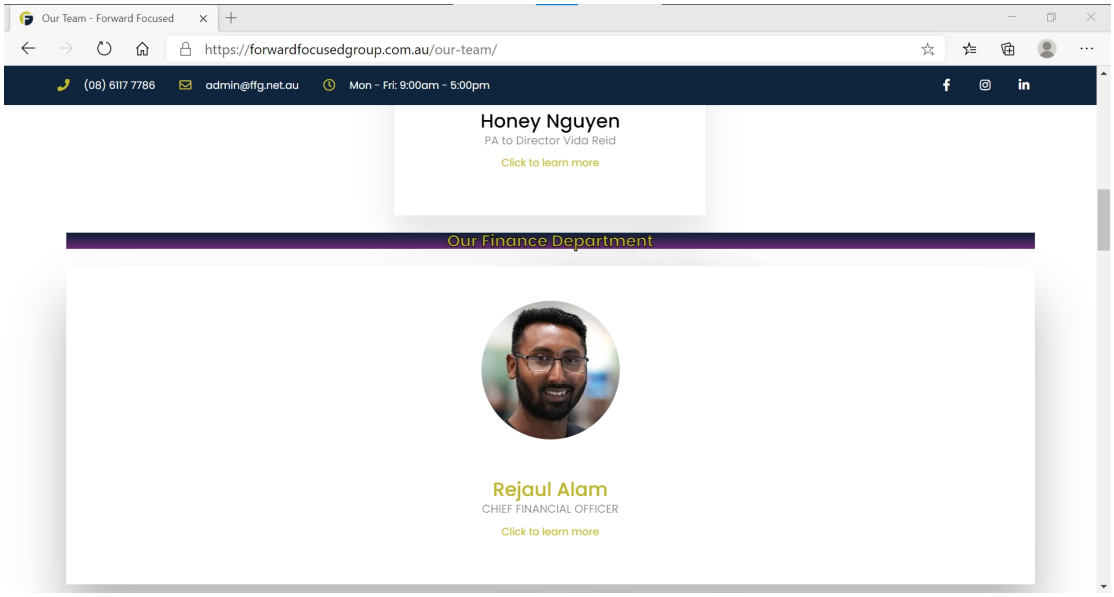
Sign up to our newsletters

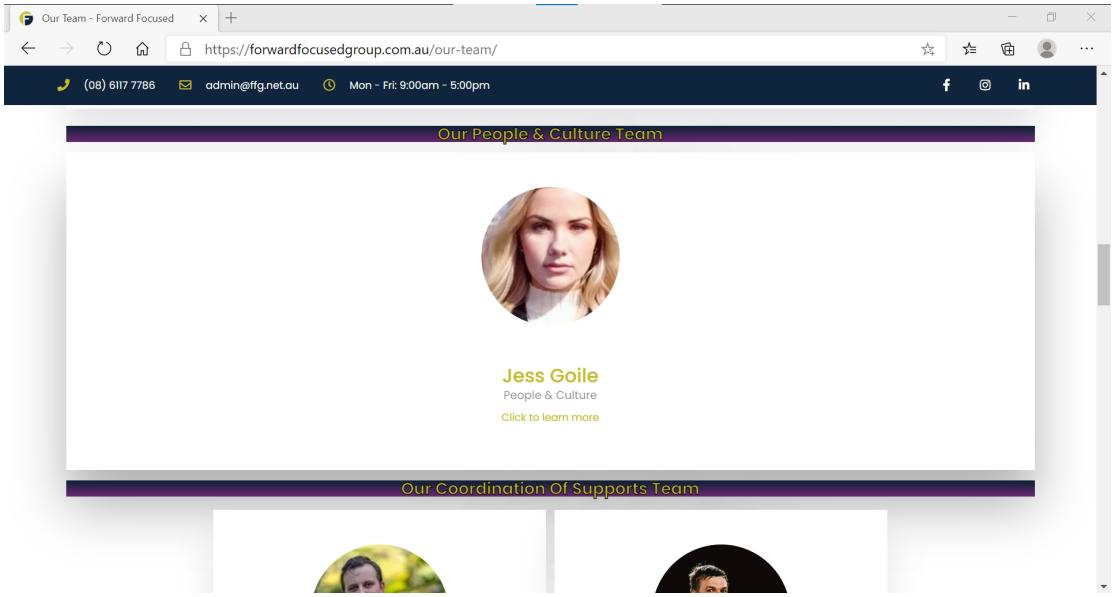
We acknowledge the Traditional Owners of the land where we work and live. We pay our respects to Elders past, present and emerging. We celebrate the stories, culture and traditions of Aboriginal and Torres Strait Islander Elders of all communities who also work and live on this land.

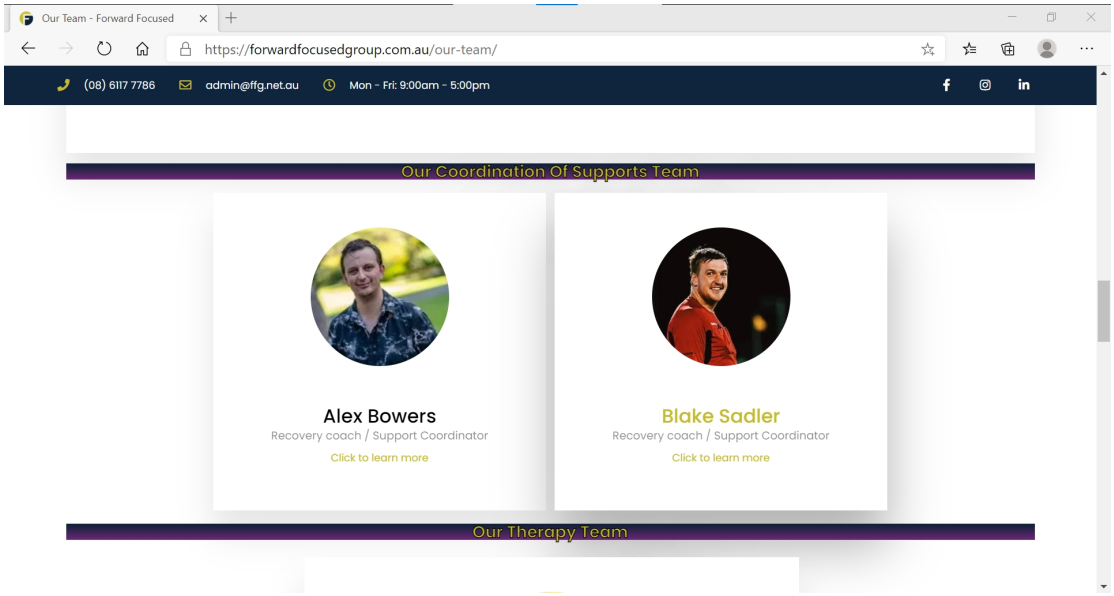
Disclaimer Privacy Site by Icon Agency

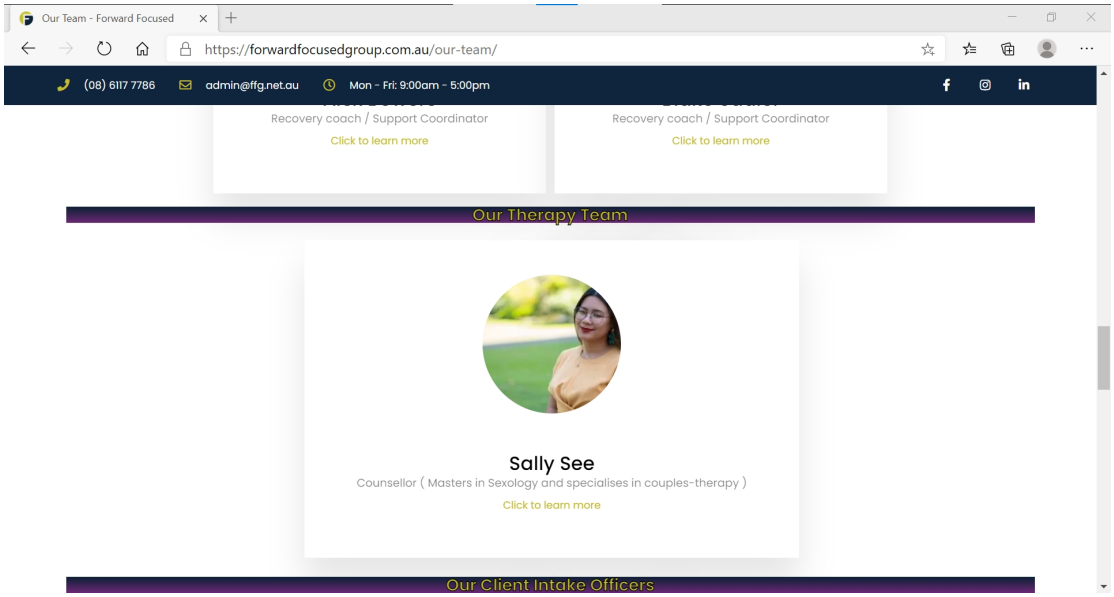

News - Forward Focused
https://forwardfocusedgroup.com.au/news-2/
(08) 6117 7786
admin@ffg.net.au
Mon - Fri: 9:00am - 5:00pm
Corporate news
Workforce Australia
Employment Services
FFG
EXPANDS INTO EMPLOYMENT SERVICES
@Forward Focused Group
Forward Focused Group
FFG
Rejaul Alam
Chief Financial Officer
FFG
APPOINTS OPERATIONS MANAGER

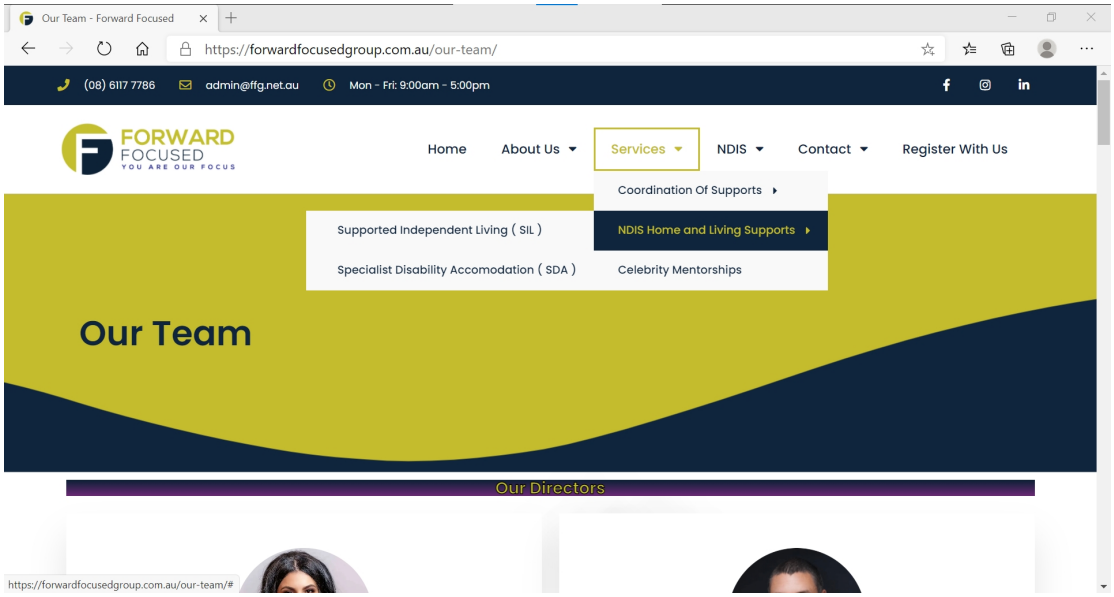

Our Team - Forward Focused
https://forwardfocusedgroup.com.au/our-team/
(08) 6117 7786
admin@ffg.net.au
Mon - Fri: 9:00am - 5:00pm
Our Directors
Vida Reid
Founding Executive Director
Click to learn more
Simon Reid
Co-Founding Executive Director
Click to learn more
javascript:void(0)

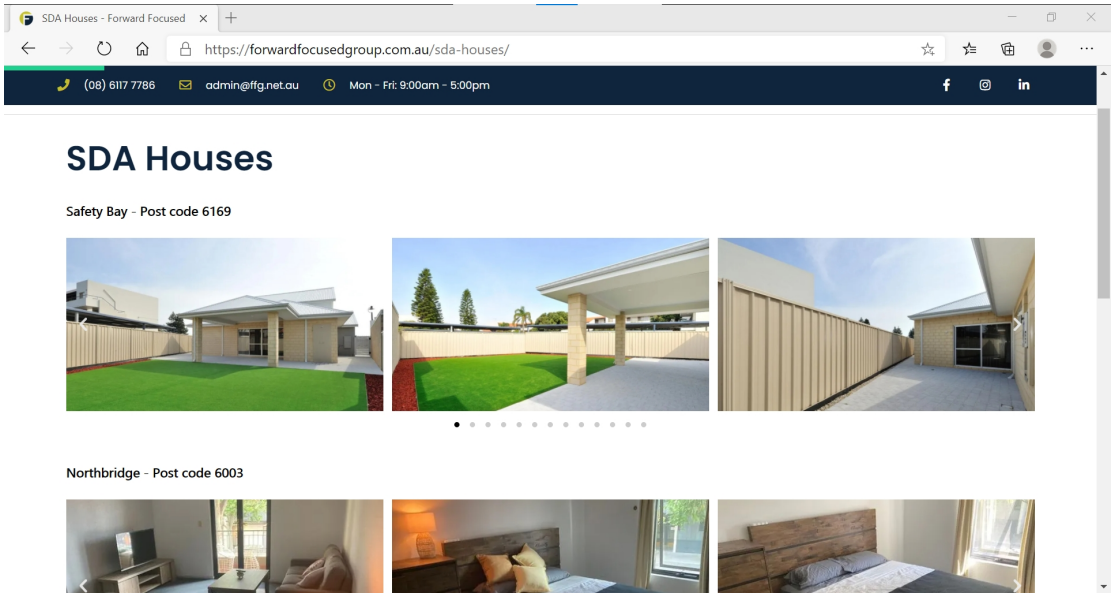

Our Team - Forward Focused
https://forwardfocusedgroup.com.au/our-team/
(08) 6117 7786
admin@ffg.net.au
Mon - Fri: 9:00am - 5:00pm
Honey Nguyen
PA to Director Vida Reid
Click to learn more
Our Finance Department
Rejaul Alam
CHIEF FINANCIAL OFFICER
Click to learn more

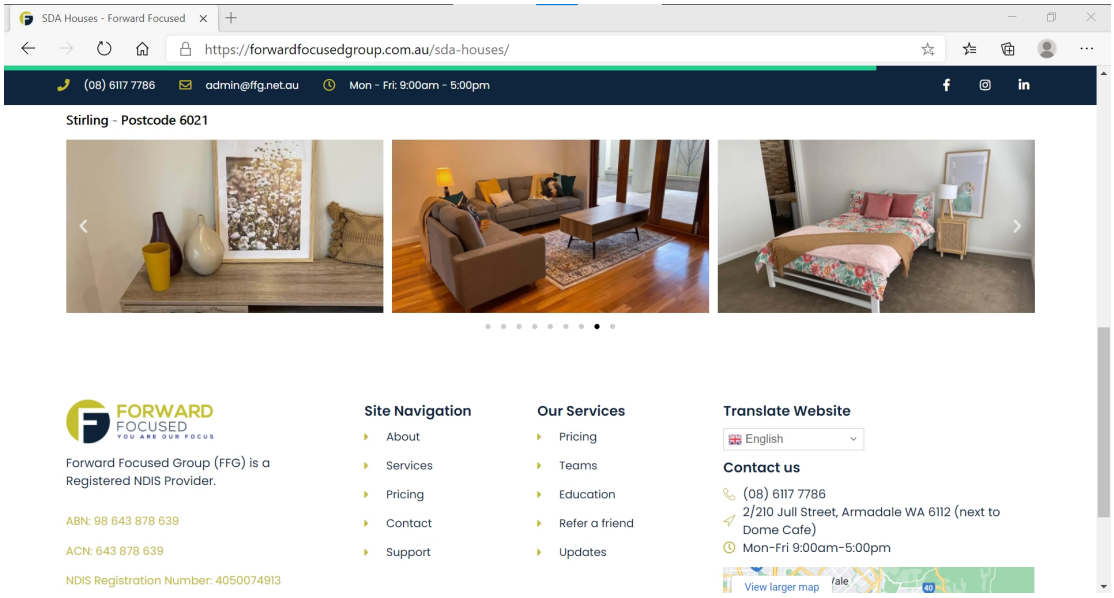

Our Team - Forward Focused
https://forwardfocusedgroup.com.au/our-team/
(08) 6117 7786
admin@ffg.net.au
Mon - Fri: 9:00am - 5:00pm
Our People & Culture Team
Jess Goile
People & Culture
Click to learn more
Our Coordination Of Supports Team


Our Team - Forward Focused
https://forwardfocusedgroup.com.au/our-team/
(08) 6117 7786
admin@ffg.net.au
Mon - Fri: 9:00am - 5:00pm
Our Coordination Of Supports Team
Alex Bowers
Recovery coach / Support Coordinator
Click to learn more
Blake Sadler
Recovery coach / Support Coordinator
Click to learn more
Our Therapy Team


Our Team - Forward Focused
https://forwardfocusedgroup.com.au/our-team/
(08) 6117 7786
admin@ffg.net.au
Mon - Fri: 9:00am - 5:00pm
Recovery coach / Support Coordinator
Click to learn more
Recovery coach / Support Coordinator
Click to learn more
Our Therapy Team
Sally See
Counsellor (Masters in Sexology and specialises in couples-therapy)
Click to learn more
Our Client Intake Officers

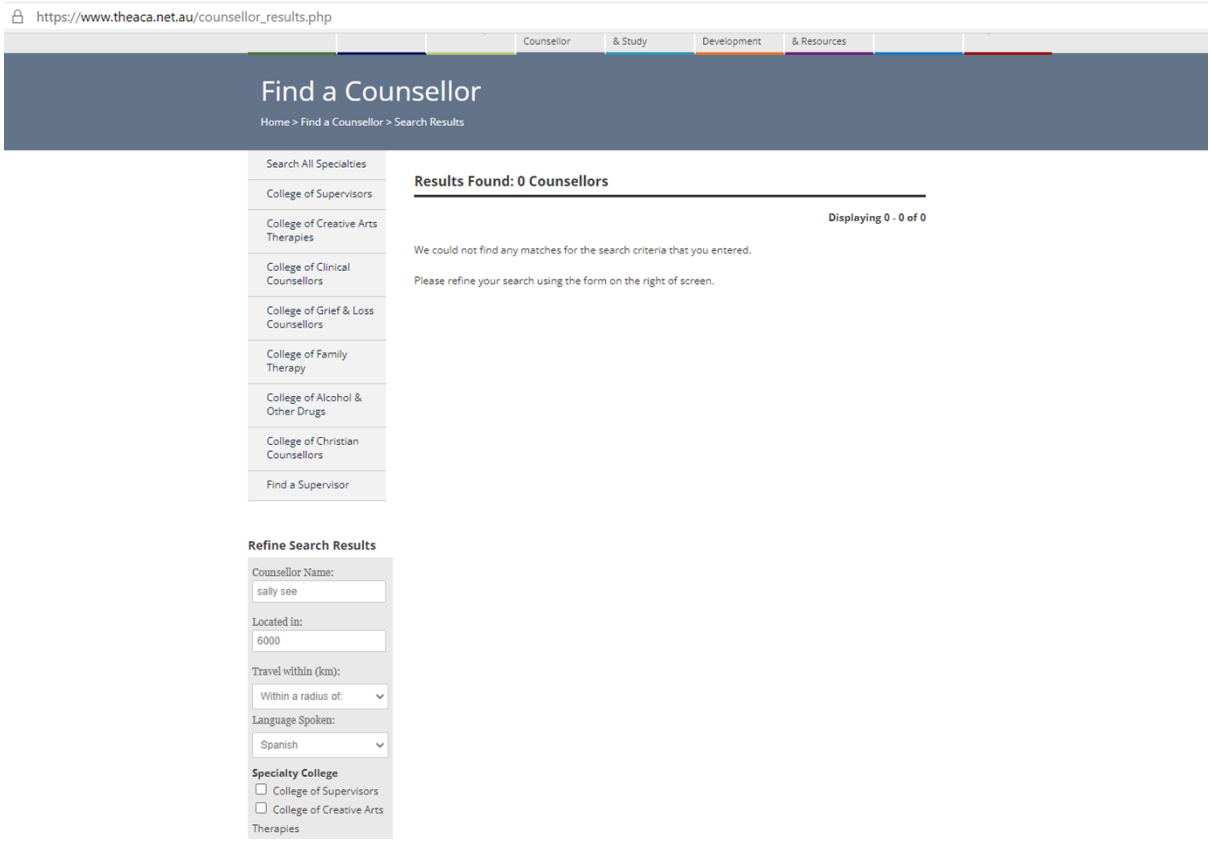

Our Team - Forward Focused
https://forwardfocusedgroup.com.au/our-team/
(08) 6117 7786
admin@ffg.net.au
Mon - Fri: 9:00am - 5:00pm
FORWARD FOCUSED
YOU ARE OUR FOCUS
Home
About Us
Services
NDIS
Contact
Register With Us
Coordination Of Supports
Supported Independent Living (SIL)
NDIS Home and Living Supports
Specialist Disability Accomodation (SDA)
Celebrity Mentorships
Our Team
Our Directors
https://forwardfocusedgroup.com.au/our-team/#


SDA Houses - Forward Focused
https://forwardfocusedgroup.com.au/sda-houses/
(08) 6117 7786
admin@ffg.net.au
Mon - Fri: 9:00am - 5:00pm
SDA Houses
Safety Bay - Post code 6169
Northbridge - Post code 6003

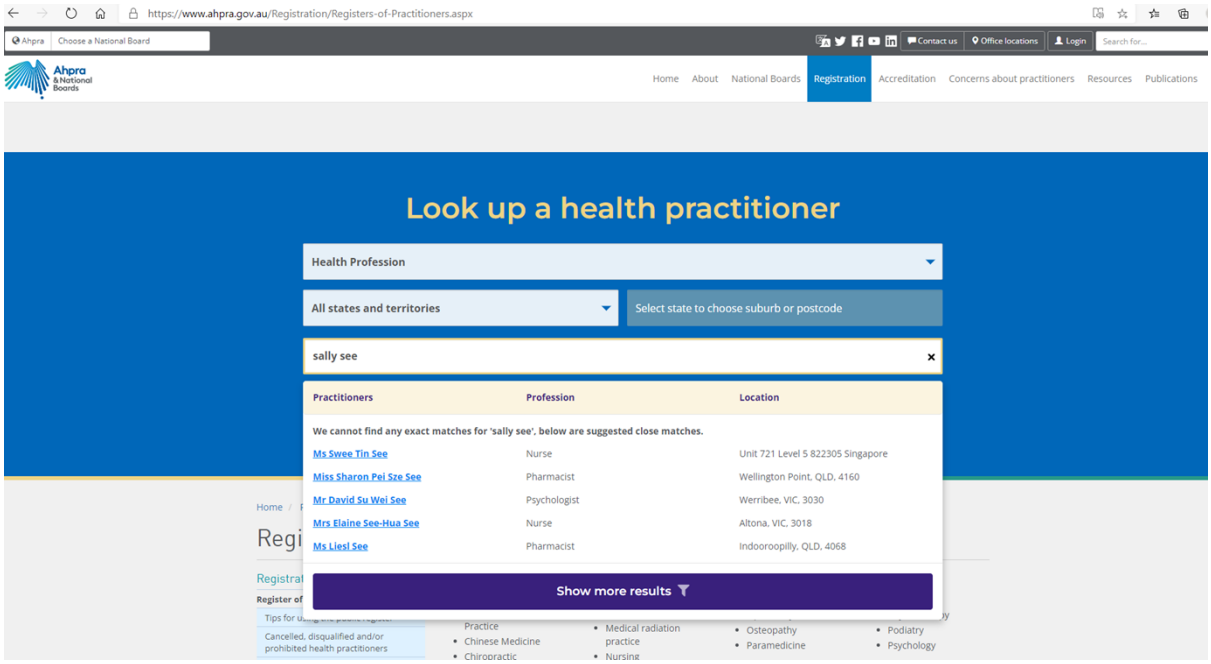

SDA Houses - Forward Focused
https://forwardfocusedgroup.com.au/sda-houses/
(08) 6117 7786
admin@ffg.net.au
Mon - Fri: 9:00am - 5:00pm
Stirling - Postcode 6021
FORWARD FOCUSED
YOU ARE OUR FOCUS
Forward Focused Group (FFG) is a Registered NDIS Provider.
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration Number: 4050074913
Site Navigation
About
Services
Pricing
Contact
Support
Our Services
Pricing
Teams
Education
Refer a friend
Updates
Translate Website
English
Contact us
(08) 6117 7786
2/210 Jull Street, Armadale WA 6112 (next to Dome Cafe)
Mon-Fri 9:00am-5:00pm
View larger map

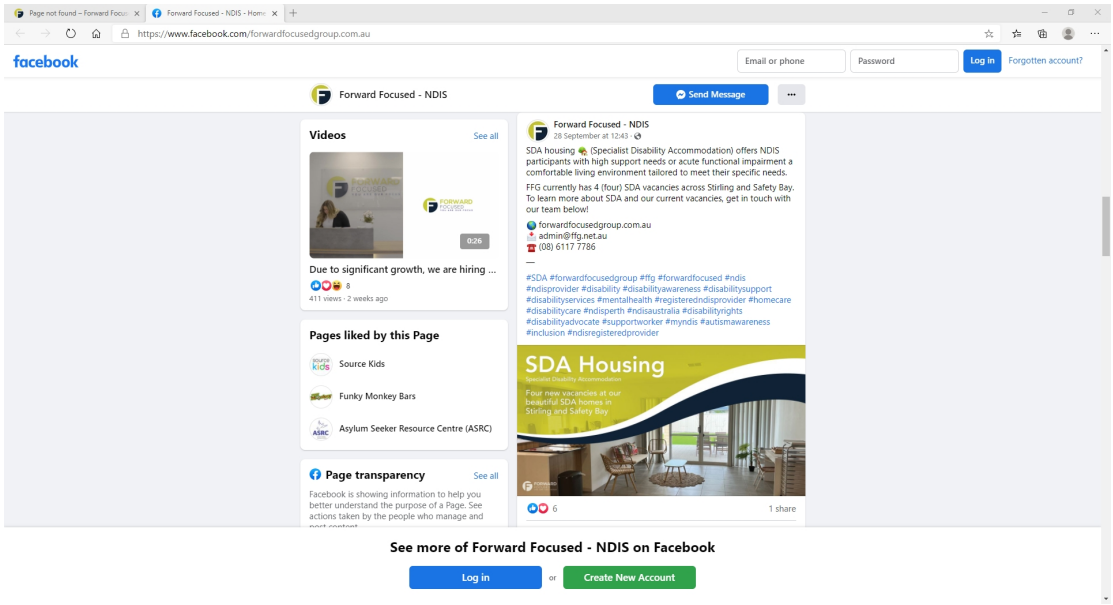
Searches performed 13 October 2022

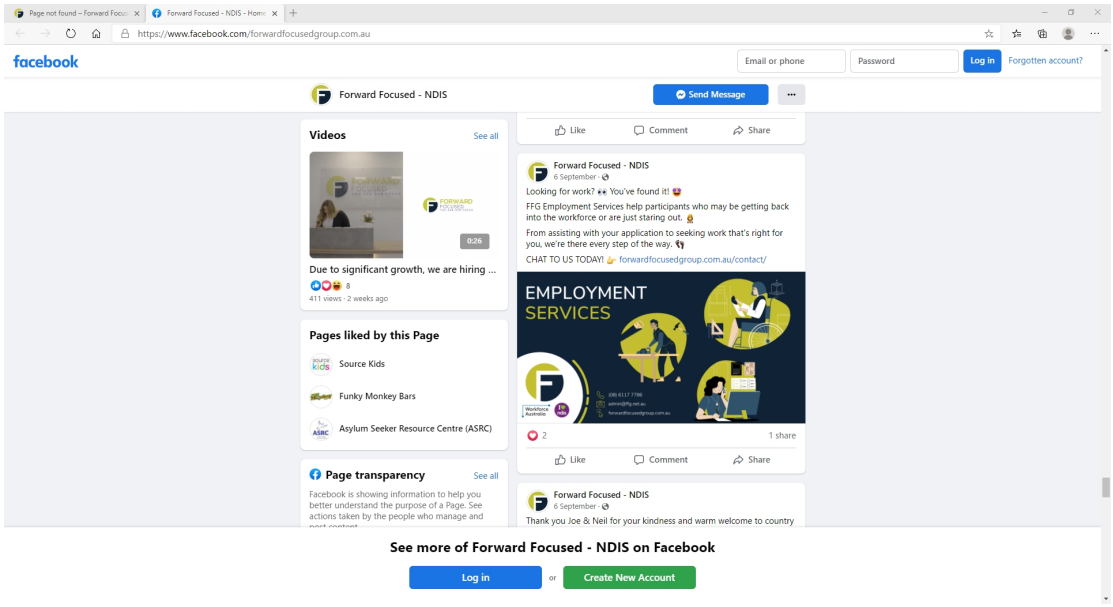
ACA search

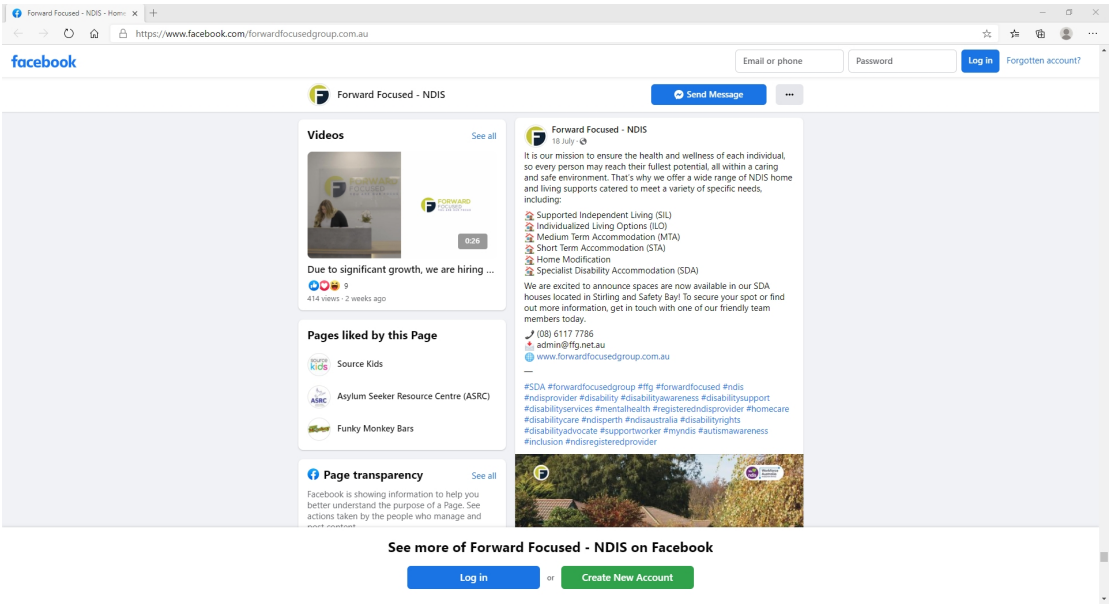


AHPRA search




https://www.facebook.com/forwardfocusedgroup.com.au
facebook
Email or phone
Password
Log in
Forgotten account?
Forward Focused - NDIS
Send Message
Videos
See all
0:26
Due to significant growth, we are hiring ...
411 views · 2 weeks ago
Pages liked by this Page
Source Kids
Funky Monkey Bars
Asylum Seeker Resource Centre (ASRC)
Page transparency
See all
Facebook is showing information to help you better understand the purpose of a Page. See actions taken by the people who manage and
Forward Focused - NDIS
28 September at 12:43
SDA housing (Specialist Disability Accommodation) offers NDIS participants with high support needs or acute functional impairment a comfortable living environment tailored to meet their specific needs.
FFG currently has 4 (four) SDA vacancies across Stirling and Safety Bay. To learn more about SDA and our current vacancies, get in touch with our team below!
forwardfocusedgroup.com.au
admin@ffg.net.au
(08) 6117 7786
—
#SDA #forwardfocusedgroup #ffg #forwardfocused #ndis #ndisprovider #disability #disabilityawareness #disabilitysupport #disabilityservices #mentalhealth #registerednidisprovider #homecare #disabilitycare #ndisperth #ndisaustralia #disabilityrights #disabilityadvocate #supportworker #myndis #autismawareness #inclusion #ndisregisteredprovider
SDA Housing
Specialist Disability Accommodation
Four new vacancies at our beautiful SDA homes in Stirling and Safety Bay
6
1 share
See more of Forward Focused - NDIS on Facebook
Log in
or
Create New Account


https://www.facebook.com/forwardfocusedgroup.com.au
facebook
Email or phone
Password
Log in
Forgotten account?
Forward Focused - NDIS
Send Message
Videos
See all
0:26
Due to significant growth, we are hiring ...
411 views · 2 weeks ago
Pages liked by this Page
Source Kids
Funky Monkey Bars
Asylum Seeker Resource Centre (ASRC)
Page transparency
See all
Facebook is showing information to help you better understand the purpose of a Page. See actions taken by the people who manage and
Like
Comment
Share
Forward Focused - NDIS
6 September ·
Looking for work? 👀 You've found it! 🤩
FFG Employment Services help participants who may be getting back into the workforce or are just staring out. 👩‍🦰
From assisting with your application to seeking work that's right for you, we're there every step of the way. 👣
CHAT TO US TODAY! 👉 forwardfocusedgroup.com.au/contact/
EMPLOYMENT
SERVICES
2
1 share
Like
Comment
Share
Forward Focused - NDIS
6 September ·
Thank you Joe & Neil for your kindness and warm welcome to country
See more of Forward Focused - NDIS on Facebook
Log in
or
Create New Account


Forward Focused - NDIS - Home
https://www.facebook.com/forwardfocusedgroup.com.au
facebook
Email or phone
Password
Log in
Forgotten account?
Forward Focused - NDIS
Send Message
Videos
See all
0:26
Due to significant growth, we are hiring ...
9
414 views · 2 weeks ago
Pages liked by this Page
Source Kids
Asylum Seeker Resource Centre (ASRC)
Funky Monkey Bars
Page transparency
See all
Facebook is showing information to help you better understand the purpose of a Page. See actions taken by the people who manage and
Forward Focused - NDIS
18 July
It is our mission to ensure the health and wellness of each individual, so every person may reach their fullest potential, all within a caring and safe environment. That's why we offer a wide range of NDIS home and living supports catered to meet a variety of specific needs, including:
Supported Independent Living (SIL)
Individualized Living Options (ILO)
Medium Term Accommodation (MTA)
Short Term Accommodation (STA)
Home Modification
Specialist Disability Accommodation (SDA)
We are excited to announce spaces are now available in our SDA houses located in Stirling and Safety Bay! To secure your spot or find out more information, get in touch with one of our friendly team members today.
(08) 6117 7786
admin@ffg.net.au
www.forwardfocusedgroup.com.au
—
#SDA #forwardfocusedgroup #ffg #forwardfocused #ndis #ndisprovider #disability #disabilityawareness #disabilitysupport #disabilityservices #mentalhealth #registeredndisprovider #homecare #disabilitycare #ndisperth #ndisaustralia #disabilityrights #disabilityadvocate #supportworker #myndis #autismawareness #inclusion #ndisregisteredprovider
See more of Forward Focused - NDIS on Facebook
Log in
or
Create New Account

Document created: 1.11.2020
Updated: 17.12.2021

Forward Focused Individual Service Agreement
NDIS Support Coordination

This Service Agreement is for a participant in the National Disability Insurance Scheme and is made between:

Participant/Participant's representative	Sarah Gilbert

AND

Provider	**Forward Focused Group (FFG)**

(each a **Party** and together the **Parties**)

For the provision of services to:

Participant	Sarah Gilbert
Participant Plan Number	431171988
Service/plan Dates	28/04/2022 to 28/04/2023

The NDIS and this Service Agreement

This Service Agreement is made for the purpose of providing support services (**Supports** or **Services**) under the Participant's National Disability Insurance Scheme (**NDIS**) Plan.

The Parties agree that this Service Agreement is made in the context of the NDIS, which is a scheme that aims to:

- Support the independence and social and economic participation of people with a disability; and
- Enable people with a disability to exercise their choice and control in pursuit if their goals, and the planning and delivery of their supports.

The terms and conditions contained in this Service Agreement (as varied from time to time in writing) will apply to any Services provided by FFG.

Glossary of Terms

FFG means the provider of Services under this agreement (otherwise known as **we** or **us**).

NDIA means the National Disability Insurance Agency.

Service Agreement means this agreement and any attached documents or schedules.

You means a person who is a receiver of Services or a person such as a family member or friend who has authority to act on behalf of the service recipient under the National Disability Insurance Scheme, as the context requires.

1. FFG's responsibilities

We will use our best efforts to:

(a) Provide the Services described in clause 4 of this Service Agreement, and/or the attached Schedule of Services, as varied from time to time;

(b) Plan with you for the provision of the Services as outlined in your NDIS plan;

(c) Consult with you about how Services will be provided and times for these Services;

(d) Review the provision of your Services quarterly;

(e) Communicate any changes, and discuss with you any barriers, to delivering any Supports or Services as per the plan, including those outside of our control;

(f) Provide you with information about our procedure for the reporting and management of complaints;

(g) Provide you with details of our Cancellation Procedure – See Point 6.

(h) Provide a minimum of 24 hours' notice where possible, when we have to change a scheduled appointment to provide the Services;

(i) Comply with all rules and regulations regarding the privacy of your personal information;

(j) Keep accurate records on the Services provided to you;

(k) We only work 9 am to 5 pm Monday to Friday. We will not respond to sms or calls after or before these hours.

(l) We can only link you to supports that fall into the guidelines of the NDIS act 2013 of reasonable and necessary criteria.

(m) Our job is not case management as we are support coordinators. We will only connect you to the supports you ask us to and link you to them.

(n) We ask that you have realistic expectations and work with us to achieve a good outcome.

(o) Provide the Services in a manner consistent with all relevant laws, including the National Disability insurance Scheme Act 2013, and the Australian Consumer Law; and (l) Provide you with regular statements of the Services we deliver to you.

(p) We will not provide transport assistance, pick or drop you off to places as that is outside of our role. We will only meet you where you have asked us to and then leave. Most of our work will be done over the phone as we are here to connect you to supports. We are not support workers.

(q) From time to time as required we may have to work with other organisations for our complex case clients and as such we will also charge the costs incurred for sourcing additional supports.

2. Your obligations

You agree that, during the duration of this Services Agreement, you will:

(a) Inform us of how you would like your Services to be provided by us to meet your needs;

(b) Always treat FFG Support Coordinators with courtesy and respect.

(c) Communicate with FFG Support Coordinator if you have any concerns about the Services being provided in accordance with our procedure for the reporting of complaints.

(d) Comply with all of the terms of this Services Agreement; and

(e) Immediately inform FFG Support Coordinator if your NDIS plan is suspended or replaced by a new NDIS plan or if you stop being a participant in the NDIS.

(f) Not ask us to provide supports outside of our role.

3. NDIS plan outcomes

Support type	Outcome
Support Coordination	To assist in the navigation of the plan, assist with service providers and supports, improve social participation.

4. Services

The Services to be delivered by FFG in this Services Agreement set out below and will be limited to the type and level of the funding allocated to FFG in your NDIS plan.

FFG will not provide any Services or Supports that exceed the level of funding allocated to FFG in your NDIS plan.

All fees or charges for Services or Supports under this Services Agreement will be in accordance with the NDIS Price Guide. **Capacity Building budget**

Support Coordination is included in the Capacity Building budget. This is a fixed amount for strengthening participants' abilities to co-ordinate and implement supports in their plans and to participate more fully in the community.

Support type	Cost	Support delivered When/Where/How
01_134_0117_8_1 Self Management Capacity Building	$1,500	20 hours of Self Management Capacity Building. When: For the duration of the plan. Where: Participant's home and / or in the community, or via email or telephone communication. ~~How: Providing support to the participant.~~

FFG Responsibilities subject to your funding

- Provide information and supports that may be available to you
- Ensure that you have genuine choice and control of your NDIS plan
- Support you in resolving service delivery issues
- Regular management of your supports throughout your NDIS plan
- Develop and collating reports for reviews

5. Reports

FFG is required to provide report(s) to the NDIA 6 weeks before your plan is due for review. The report will document how the Services provided by FFG have contributed to the achievement of goals in your NDIS plan as well as provide recommendations to inform your future NDIS plan. **6. Cancellations**

(a) If:

i. a Service is less than 8 hours' continuous duration; and

ii. the total price for the Service is less than $1,000.00

then you must provide at least 2 clear business days' notice to cancel or reschedule that Service.

(b) For any other Services, you must provide at least 5 clear business days' notice to cancel or reschedule that Service.

(c) If you do not provide the notice required under this clause, we may charge you up to 90% of the charge for that cancelled or rescheduled Service.

7. Occupational Safety and Health

An Occupational Safety and Health Assessment Report of your premises may be completed and provided by FFG. A copy will be kept in the FFG file at your residence if required.

An Individual Care Plan and Service Planner can be completed by FFG staff and kept on file at your residence (if applicable).

8. Payment for the Services

The Services provided by FFG must be paid to FFG by:

(a) NDIA

(b) the Participant, if your NDIS plan is self-managed; or (c) **a nominated plan manager if** your NDIS **plan** is **managed.**

[delete/cross out whichever is not applicable].

If you or your nominated plan manager are responsible for payment of the Services:

(a) FFG will issue fortnightly invoices for the Services; and

(b) Payment for the Services must be made within 14 days of the date of each invoice.

You may also request an activity statement at any time.

Where the Services are paid by the NDIA:

(a) FFG will issue weekly invoices to the NDIA.

(b) The pricing in your plan is inclusive of the time required for all activities related to the Service including assessment, planning and preparation, liaison, report writing, training, direct contact (e.g. face to face, phone, teleconference, skype, email) and indicate the potential hours for assessment, planning and intervention. For example, NDIS will pay for a physiotherapist to write a report to NDIA, or for the time taken to liaise with other service providers/health professional regarding your care/services or research on your behalf.

(c) If the NDIA change the price payable to service providers for the Services:

   a. your plan will be automatically adjusted to account for the increase in prices; and

   b. we may increase the prices we charge to you in accordance with any corresponding increase in the prices payable to service providers by the NDIA.

(d) There can be a delay in between the expiry of this plan and the completion of a new service agreement for your renewed plan. FFG will continue to provide Services in accordance with this Service Agreement after the expiry date of your current plan to ensure continuity. If you decide to use another service provider for your renewed plan, please notify FFG of this immediately. You will need to ensure that FFG receive payment for the Services during this period, in accordance with this Service Agreement.

(e) If you receive notification that the NDIA has, for whatever reason, withdrawn funding for the Services, you must notify FFG within 7 days. If you do not notify FFG within 7 days, you may be personally be liable for payment of any Services provided by FFG.

9. Provider Travel

We will charge you for travel in accordance with the NDIS Price Guide, as amended from time to time.

10. Changes to this Service Agreement

If changes to the Services, or their delivery, are required, FFG and the Participant agree to discuss and review this Service Agreement.

From time to time, FFG can make alterations to this Service Agreement due to changes in the policy and procedure of the NDIA.

FFG and the Participant agree that any changes to this Service Agreement will be in writing.

11. Ending this Service Agreement

Either Party may terminate this Service Agreement by giving the other Party one month's notice in writing.

12. Feedback, Complaints and Disputes

Feedback, complaints and disputes The FFG welcomes feedback.

How to raise your concerns and complaints:

1. Tell your support staff or your case manager. This is often the quickest way to address and resolve your concerns.
2. You can also raise your concerns and complaints with the Manager of the service.
3. FGG's website https://forwardfocusedgroup.com.au also has a Feedback Form you can complete. This form will be sent to the FFG's Manager Policy, Planning & Development.

If you are not satisfied or do not want to talk to this person, you can contact the National Disability Insurance Agency by calling **1800 800 110**, visiting one of their offices in person, or visiting the website **ndis.gov.au** for further information.

13. Goods and Services Tax (GST)

All prices are GST inclusive (if applicable).

For the purposes of GST legislation, you agree that:

The Services described in this Service Agreement are reasonable and necessary supports specified in the statement of supports in the Participant's NDIS plan currently in effect under section 37 of the *National Disability Insurance Scheme Act 2013*;

The Participant's NDIS plan is expected to remain in effect during the period the Services are provided; and

The Participant/Participant's representative will immediately notify the FFG if the Participant's NDIS Plan is replaced or the Participant stops being a participant in the NDIS.

14. Acknowledgement

Document created: 1.11.2020
Updated: 17.12.2021

Participant/Participant's representative agrees that this agreement has been explained and agrees to receive the Services from FFG on the terms and conditions set out in this Service Agreement.
Signed by:

Name: Sarah Gilbert
[Participant / Participant's representative]

S. Gilbert
[Participant / Participant's representative]

Name: Blake Sadler
Authorised person from FFG

Signature: _____
Authorised person from FFG

Date: 07/06 /2022

FFG contact details:

FFG Address	**2/210 Jull street, Armadale, 6112, WA**
Contact Name	Accounts
Contact Number	08-61177786 Accounts@ffg.net.au

FFG/NDIS Service Agreement check list

- ☑ I understand what is expected of me
- ☑ I understand what is expected from FFG
- ☑ I understand what services I have agreed for FFG to deliver
- ☑ I understand what services will be delivered by FFG and how they will be charged
- ☑ I understand what to do if I want to make changes to this Service agreement
- ☑ I understand what is expected of me if I want to make changes to my services
- ☑ I understand what is expected of me if I want to end this Service agreement
- ☑ I understand what to do if I have a problem and I know who to contact
- ☑ I have signed the Service agreement acknowledgement
- ☑ I have provided FFG a copy of my NDIS plan
- ☑ I have a copy of this Service agreement for my records or a copy will be sent to me

I have completed this checklist and by signing here indicate that I understand this Service Agreement

Name: Sarah Gilbert
[Participant / Participant's representative]

Signature: _____
[Participant / Participant's representative]

Date: 07/06/ 2022

Doc ID: 89a5c0559d3db480a7c27143a313f4917f8743ae

T23. PDMS (EC22-0020(48782019.1).pdf 8

7/08/2023 3:04:45 PM

HELLOSIGN

Audit trail

TITLE	NDIS-FFG Service Agreement
FILE NAME	FFG - NDIS SERVIC...SUPPORT COORD.pdf
DOCUMENT ID	89a5c0559d3db480a7c27143a313f4917f8743ae
AUDIT TRAIL DATE FORMAT	MM / DD / YYYY
STATUS	Signed

Document history

SENT	**06 / 07 / 2022** 03:05:19 UTC	Sent for signature to Blake (blake.s@ffg.net.au) from admin@ffg.net.au IP: 159.196.89.232
VIEWED	**06 / 07 / 2022** 03:05:51 UTC	Viewed by Blake (blake.s@ffg.net.au) IP: 159.196.89.232
SIGNED	**06 / 07 / 2022** 03:08:02 UTC	Signed by Blake (blake.s@ffg.net.au) IP: 159.196.89.232
COMPLETED	**06 / 07 / 2022** 03:08:02 UTC	The document has been completed.

Powered by HELLOSIGN

From: tegan.bonham@iinet.net.au
Sent: Friday, 26 November 2021 4:45 PM
To: accounts
Subject: Tiffany Rose
Attachments: Unknown.pdf

Follow Up Flag: Follow up
Flag Status: Completed

Categories: Green Category

Please can you review the attached invoice that has been paid by NDSP. I can't see how they could possibly be owed for 39 hours when practically no work has been done for Tiffany's plan. While I understand there is some amount outstanding due to difficulty having an item that can be billed, I can not see how it would add up to this amount. Please can you provide and itemised account of all work done for Tiffany that is being charged.

I am also awaiting a response from my previous emails regarding errors on multiple invoices for myself and Ethan Bonham.

If these incorrect invoices continue to occur I will have no choice but to report the situation to the NDIS Quality and Safeguards Commission.

Regards

Tegan Bonham

From: FFG Admin
Sent: Monday, 28 March 2022 8:59 AM
To: accounts
Subject: FW: Re "Invoices not approved - Notice" dated 24-03-2022

Good Morning,

I'm pretty sure I'm meant to forward this to you due to it being about accounts/invoices 😊



Ally Oleksiuk
Client Intake Office at Forward Focused Group

A 2/210 Jull street, Armadale, WA 6112
[Next to Dome Cafe]
P 08-61177786 **M** 0493290419
E ally.o@ffg.net.au
W https://forwardfocusedgroup.com.au

fa li in

IMPORTANT: This e-mail is for the use of the intended recipient only and may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail



From: Joshua Davidson <jdtherapy@jomida.com>
Sent: Sunday, 27 March 2022 7:58 PM
To: FFG Admin <admin@ffg.net.au>
Subject: Re "Invoices not approved - Notice" dated 24-03-2022

Hi Forward Focus Group,

I have discussed your recent correspondence with Andy and he has instructed NDIS to reject the following invoices:
INV-0887
INV-0888
INV-0889
INV-0351

After reviewing these invoices, we found no evidence that the services indicated on those invoices have been provided to Mr 'Andy' Andrew Hahn, nor that Andy had agreed to provision of those services, nor that those services form part of a category funded on Andy's NDIS plans for 2021/2022 or 2022/2023.

If you wish to resubmit those invoices, please forward the following to myself for review and approval 5 business days before doing so:
- evidence of service provision (including name of providing staff member and specific tasks performed)
- evidence of Andy's acceptance of contract to provide these services prior to provision of services, such as acceptance of a NDIS Service Agreement
- brief statement of which category of Andy's NDIS funding the services are claimed under and how they progressed the relevant NDIS goal.
The invoices will not be approved without provision of all of the above reasonable supporting documentation.

I have also reviewed Andy's Lodging Agreement with Forward Focused Group dated 21 January 2022. Rent payments per this agreement are paid up to date and Andy has not breached any terms of the Lodging Agreement. Please immediately discontinue unsubstantiated threats of eviction. Threats of eviction can be distressing to anybody and are particularly unwarranted in a disability housing provision context. Again, if you have evidence to the contrary, please forward it to myself in writing for review 5 business days before issuing any further notices or invoices. If you are unable to continue providing this tenancy please provide 60 days written notice per the Lodging Agreement.

I would have preferred to discuss this more amicably in person, but unfortunately you canceled the planned meeting on Friday 25 March 2022, and then issued a deadline of Monday 28 March 2022.

If you wish to discuss further, please suggest some meeting times you can commit to with 10 working days notice, or email me at jdtherapy@jomida.com. Please do not cause Andy further distress by continuing to contact him directly about invoicing or tenancy issues, I have advised him not to discuss these without the presence of myself or another support person nominated by Andy.

Joshua Davidson, BSW

Joshua Davidson Therapy

Mob: 0466 123 187

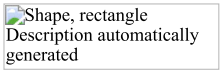
From: Blake Sadler
Sent: Thursday, 31 March 2022 11:37 AM
To: feedback@ndis.gov.au
Cc: Danica H
Subject: NDIS Client 431754820 - Max Teague
Attachments: Invoice NDIS-1400-1.pdf; Invoice NDIS-000000375-1.pdf

Follow Up Flag: Follow up
Flag Status: Completed

Greetings NDIS feedback

NDIS Client Max Teague has not been paying invoices from services provided. Attached are the invoices with service and dates from what Forward Focused Group have provided and have had pushed back from the client. We have attempted to contact the mother of the participant multiple times through emails, phone calls and attempted arrangements for meetings which the participants mum has not attended.

Please be advised to change to Agency Managed for future services acquired as this could cause potential risk providing to this client.

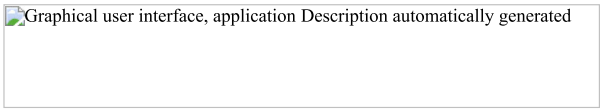




Blake Sadler
Support Coordinator and Recovery Coach
at Forward Focused Group

A 2/210 Jull street, Armadale, WA 6112
[Next to Dome Cafe]
P 08-61177786 **M** 0478857815
E blake.s@ffg.net.au
W https://forwardfocusedgroup.com.au

IMPORTANT: This e-mail is for the use of the intended recipient only and may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail



Statement in the matter of R v Vida Reid

Name	Sarah-Jane Hammond
Occupation	Tax Consultant
Address	Known to National Disability Insurance Scheme (NDIS)
Date	18 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Sarah-Jane Hammond and I am 32 years old.

3. In March 2021, I was diagnosed with Autism by Dr Ritu Campbell, who encouraged me to take the diagnosis report of hers to the National Disability Insurance Scheme (NDIS). I then filled out the Access Request Form (ARF) after contacting the NDIS and went into the Rockingham NDIS branch and submitted my paperwork in person.

4. In April 2021, I was accepted as a participant of the NDIS and was given my NDIS number 431685148. My first plan was from 22 April 2021 to 27 July 2022 which was to the value of $61,325.91. My current NDIS plan is from 11 October 2022 to 10 October 2024 which is to the value of $36,895.60.

5. My understanding of the NDIS is to provide funding to pay for services in assisting and supporting me with everyday living. The NDIS is there to cover the Gaps that Medicare and other services cannot assist me with, I understand that it is not for daily living expenses.

Signature

Witness

C. Bruckner

6. In April 2021, my cleaner who I had built a great relationship with was no longer able to provide me with services. I needed to find my own provider and I ended up looking around to find someone else who I was able to trust to come into my home and clean.

7. In December 2021, my mum gave an extended family member who was Elanore Smith (Elanore), worked for a company called Forward Focused Group (FFG), my contact number. I received a called from Elanore and in this discussion, we spoke about what I required and the supports I needed. Elanore said she would give my contact details to someone at FFG.

8. In early February 2022, I received a call from a man called Alex Bowers (Alex) who worked for FFG, in this discussion we spoke about Alex coming to meet me at my home and discuss in further depth of what I was needing.

9. The following week Alex came to my home by himself, we discussed what services I was requiring, and I explained to him I needed cleaning and that this was my main priority. Alex said FFG could help and promised me he would organise cleaning services as they had a cleaner that was employed by FFG directly and had been vetted. In this meeting, I also signed an electronic version of the Service Agreement which I read through and there was cleaning services listed on there as I insisted on reviewing it before signing. On where I signed for the Service Agreement, Alex had little box connected to the laptop like the ones at the bank. I signed this box, but I do not remember ever receiving a copy of that Service Agreement. I do remember something I saw that said please sign.

10. About three weeks later in March 2022 after my meeting with Alex, life was busy, and I really needed the supports we spoke about, and I had not heard from him or the alleged cleaner he mentioned in our meeting. I called Alex and he said he has put me on the list for the cleaner to contact me and he didn't know why I hadn't heard from them. Alex also said I have also filled in this paperwork for you so you can receive Support Co-Ordination. I responded to him and said this was not what we discussed in our meeting, as I only wanted a cleaner and a small amount of yard

work to be done. His response was that was all in the works, we are getting a Support Co-Ordinator to assist with those services.

11. In April 2022, I called Alex from my honeymoon asking him what was happening with my cleaning services as nothing was happening and his response was that we never promised you a cleaner or any of these services. He said that we only said we would assist you in getting Support Co-Ordination. I said to him that my plan was due to be finished soon and I told him not to do anything with my plan and I would sort it out.

12. On the 26 April 2022, when my plan was due to end, I sent a text to Alex stating I will not be continuing services with FFG. Alex sent an email stating sorry to hear that I was leaving and that if I needed anything over the next 4 weeks to let him know. In this email Alex also states that I needed to pay $4,000 cancellation fee personally if I wanted to cease immediately. In this email a copy of a Service Agreement was attached, which was the first time I had ever seen this document.

ANNEXURE: I NOW PRODUCE SH001 A COPY OF THE TEXT MESSAGES SENT TO ALEX CANCELLING AGREEMENT WITH FFG.

ANNEXURE: I NOW PRODUCE SH002 A COPY OF THE EMAIL SENT TO ME ON THE 26 APRIL 2022 FROM ALEX AT FFG.

ANNEXURE: I NOW PRODUCE SH003 A COPY OF THE SIGNED SERVICE AGREEMENT DATED 3 MARCH 2022.

13. On 13 June 2022, I received an email from my plan manager stating there was an outstanding invoice for FFG for $4,003.04. I called FFG immediately and asked them what this invoice was for, their response was it was cancellation fees. I then responded and said my plan has ended and they could not be charging for anything. They said Alex would call me which I never heard from him, so I decided to forward it to the NDIS Fraud team. A few weeks later Alex called me and said we have reduced the amount to $553.27 and that I needed to have my plan manager pay it immediately. I logged into my NDIS portal and noticed the $4,003.04 invoice

had been dropped down to $553.27. I went back to Alex and told him I will not be approving this invoice as it is after my plan has ended and I never received any services from FFG. Alex then said I have to pay it or I will be taken to court, I then told him I reported FFG to NDIS and I would be happy to go to court. I told him that if there were any more questions that Alex would need to contact my plan manager as I was finding this stressful.

ANNEXURE: I NOW PRODUCE SH004 A COPY OF THE INVOICE MY PLAN MANAGER RECEIVED FROM FFG.

14. Since my discussions with Alex in June 2022, I have never spoken with Alex at FFG and I have never spoken to anyone else from FFG.

15. On 17 October 2022, Christine Bruckner (Investigator Bruckner) an investigator from the NDIS contacted me to ask about my claims for the NDIS. We had a conversation over the phone about these claims.

16. On 18 October 2022, Investigator Bruckner and I met in person, and she showed me a list of claims which were submitted by FFG. I was able to see on the list, claims for 'Capacity Building and Training in Self-Management and Plan Management' have been made by FFG. I can confirm I have never received these services or any other services from FFG.

17. This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature _____
Sarah-Jane Hammond

Statement taken and signature witnessed by me about 9:25 am on 18 October 2022 at an address in Perth in Western Australia.

Signature _____
Christine Bruckner – Fraud Investigator
Perth Western Australia

.....
Signature
Sarah-Jane Hammond

.....
Witness
Christine Bruckner

SH003 1 of 9

T27

Document created: 1.11.2020
Updated: 17.12.2021

FORWARD FOCUSED
YOU ARE OUR FOCUS

Forward Focused Individual Service Agreement
NDIS Support Coordination

This Service Agreement is for a participant in the National Disability Insurance Scheme and is made between:

Participant/Participant's representative	Sarah-Jane Hammond

AND

Provider	**Forward Focused Group (FFG)**

(each a **Party** and together the **Parties**)

For the provision of services to:

Participant	Sarah-Jane Hammond
Participant Plan Number	431685148
Service/plan Dates	22/04/2021 - 22/04/2022

Doc ID: 5761b90b70767fe987c98e5ce3e047ce0bcb2a0f

FORWARD FOCUSED
YOU ARE OUR FOCUS

The NDIS and this Service Agreement

This Service Agreement is made for the purpose of providing support services (**Supports** or **Services**) under the Participant's National Disability Insurance Scheme (**NDIS**) Plan.

The Parties agree that this Service Agreement is made in the context of the NDIS, which is a scheme that aims to:

- Support the independence and social and economic participation of people with a disability; and
- Enable people with a disability to exercise their choice and control in pursuit if their goals, and the planning and delivery of their supports.

The terms and conditions contained in this Service Agreement (as varied from time to time in writing) will apply to any Services provided by FFG.

Glossary of Terms

FFG means the provider of Services under this agreement (otherwise known as **we** or **us**).

NDIA means the National Disability Insurance Agency.

Service Agreement means this agreement and any attached documents or schedules.

You means a person who is a receiver of Services or a person such as a family member or friend who has authority to act on behalf of the service recipient under the National Disability Insurance Scheme, as the context requires.

1. FFG's responsibilities

We will use our best efforts to:

(a) Provide the Services described in clause 4 of this Service Agreement, and/or the attached Schedule of Services, as varied from time to time;

(b) Plan with you for the provision of the Services as outlined in your NDIS plan;

(c) Consult with you about how Services will be provided and times for these Services;

(d) Review the provision of your Services quarterly;

(e) Communicate any changes, and discuss with you any barriers, to delivering any Supports or Services as per the plan, including those outside of our control;

(f) Provide you with information about our procedure for the reporting and management of complaints;

(g) Provide you with details of our Cancellation Procedure – See Point 6.

(h) Provide a minimum of 24 hours' notice where possible, when we have to change a scheduled appointment to provide the Services;

(i) Comply with all rules and regulations regarding the privacy of your personal information;

(j) Keep accurate records on the Services provided to you;

(k) We only work 9 am to 5 pm Monday to Friday. We will not respond to sms or calls after or before these hours.

Doc ID: 5761b90b70767fe987c98e5ce3e047ce0bcb2a0f

(l) We can only link you to supports that fall into the guidelines of the NDIS act 2013 of reasonable and necessary criteria.

(m) Our job is not case management as we are support coordinators. We will only connect you to the supports you ask us to and link you to them.

(n) We ask that you have realistic expectations and work with us to achieve a good outcome.

(o) Provide the Services in a manner consistent with all relevant laws, including the National Disability insurance Scheme Act 2013, and the Australian Consumer Law; and (l) Provide you with regular statements of the Services we deliver to you.

(p) We will not provide transport assistance, pick or drop you off to places as that is outside of our role. We will only meet you where you have asked us to and then leave. Most of our work will be done over the phone as we are here to connect you to supports. We are not support workers.

(q) From time to time as required we may have to work with other organisations for our complex case clients and as such we will also charge the costs incurred for sourcing additional supports.

2. Your obligations

You agree that, during the duration of this Services Agreement, you will:

(a) Inform us of how you would like your Services to be provided by us to meet your needs;

(b) Always treat FFG Support Coordinators with courtesy and respect.

(c) Communicate with FFG Support Coordinator if you have any concerns about the Services being provided in accordance with our procedure for the reporting of complaints.

(d) Comply with all of the terms of this Services Agreement; and

(e) Immediately inform FFG Support Coordinator if your NDIS plan is suspended or replaced by a new NDIS plan or if you stop being a participant in the NDIS.

(f) Not ask us to provide supports outside of our role.

3. NDIS plan outcomes

Support type	Outcome
Assistance with Daily Life	01_134_0117_8_1 - Self-Management Capacity Building (Support Coordination)

4. Services

Doc ID: 5761b90b70767fe987c98e5ce3e047ce0bcb2a0f

The Services to be delivered by FFG in this Services Agreement set out below and will be limited to the type and level of the funding allocated to FFG in your NDIS plan.

FFG will not provide any Services or Supports that exceed the level of funding allocated to FFG in your NDIS plan.

All fees or charges for Services or Supports under this Services Agreement will be in accordance with the NDIS Price Guide. **Capacity Building budget**

Support Coordination is included in the Capacity Building budget. This is a fixed amount for strengthening participants' abilities to co-ordinate and implement supports in their plans and to participate more fully in the community.

Support type	Cost	Support delivered When/Where/How
Assistance with Daily Life	$6,509.00	100 Hours of Assistance with Daily Life

FFG Responsibilities subject to your funding

- Provide information and supports that may be available to you
- Ensure that you have genuine choice and control of your NDIS plan
- Support you in resolving service delivery issues
- Regular management of your supports throughout your NDIS plan
- Develop and collating reports for reviews

5. Reports

FFG is required to provide report(s) to the NDIA 6 weeks before your plan is due for review. The report will document how the Services provided by FFG have contributed to the achievement of goals in your NDIS plan as well as provide recommendations to inform your future NDIS plan. **6. Cancellations**

(a) If:

i. a Service is less than 8 hours' continuous duration; and

ii. the total price for the Service is less than $1,000.00

then you must provide at least 2 clear business days' notice to cancel or reschedule that Service.

(b) For any other Services, you must provide at least 5 clear business days' notice to cancel or reschedule that Service.

(c) If you do not provide the notice required under this clause, we may charge you up to 90% of the charge for that cancelled or rescheduled Service.

7. Occupational Safety and Health

An Occupational Safety and Health Assessment Report of your premises may be completed and provided by FFG. A copy will be kept in the FFG file at your residence if required.

An Individual Care Plan and Service Planner can be completed by FFG staff and kept on file at your residence (if applicable).

8. Payment for the Services

The Services provided by FFG must be paid to FFG by:

(a) NDIA

(b) the Participant, if your NDIS plan is self-managed; or (c) **a nominated plan manager if** your NDIS **plan** is **managed**.

[delete/cross out whichever is not applicable].

If you or your nominated plan manager are responsible for payment of the Services:

(a) FFG will issue fortnightly invoices for the Services; and

(b) Payment for the Services must be made within 14 days of the date of each invoice.

You may also request an activity statement at any time.

Where the Services are paid by the NDIA:

(a) FFG will issue weekly invoices to the NDIA.

(b) The pricing in your plan is inclusive of the time required for all activities related to the Service including assessment, planning and preparation, liaison, report writing, training, direct contact (e.g. face to face, phone, teleconference, skype, email) and indicate the potential hours for assessment, planning and intervention. For example, NDIS will pay for a physiotherapist to write a report to NDIA, or for the time taken to liaise with other service providers/health professional regarding your care/services or research on your behalf.

(c) If the NDIA change the price payable to service providers for the Services:

a. your plan will be automatically adjusted to account for the increase in prices; and

b. we may increase the prices we charge to you in accordance with any corresponding increase in the prices payable to service providers by the NDIA.

(d) There can be a delay in between the expiry of this plan and the completion of a new service agreement for your renewed plan. FFG will continue to provide Services in accordance with this Service Agreement after the expiry date of your current plan to ensure continuity. If you decide to use another service provider for your renewed plan, please notify FFG of this immediately. You will need to ensure that FFG receive payment for the Services during this period, in accordance with this Service Agreement.

(e) If you receive notification that the NDIA has, for whatever reason, withdrawn funding for the Services, you must notify FFG within 7 days. If you do not notify FFG within 7 days, you may be personally be liable for payment of any Services provided by FFG.

9. Provider Travel

We will charge you for travel in accordance with the NDIS Price Guide, as amended from time to time.

10. Changes to this Service Agreement

If changes to the Services, or their delivery, are required, FFG and the Participant agree to discuss and review this Service Agreement.

From time to time, FFG can make alterations to this Service Agreement due to changes in the policy and procedure of the NDIA.

FFG and the Participant agree that any changes to this Service Agreement will be in writing.

11. Ending this Service Agreement

Either Party may terminate this Service Agreement by giving the other Party one month's notice in writing.

12. Feedback, Complaints and Disputes

Feedback, complaints and disputes The FFG welcomes feedback.

How to raise your concerns and complaints:

1. Tell your support staff or your case manager. This is often the quickest way to address and resolve your concerns.
2. You can also raise your concerns and complaints with the Manager of the service.
3. FGG's website https://forwardfocusedgroup.com.au also has a Feedback Form you can complete. This form will be sent to the FFG's Manager Policy, Planning & Development.

If you are not satisfied or do not want to talk to this person, you can contact the National Disability Insurance Agency by calling **1800 800 110**, visiting one of their offices in person, or visiting the website **ndis.gov.au** for further information.

13. Goods and Services Tax (GST)

All prices are GST inclusive (if applicable).

For the purposes of GST legislation, you agree that:

The Services described in this Service Agreement are reasonable and necessary supports specified in the statement of supports in the Participant's NDIS plan currently in effect under section 37 of the *National Disability Insurance Scheme Act 2013*;

The Participant's NDIS plan is expected to remain in effect during the period the Services are provided; and

The Participant/Participant's representative will immediately notify the FFG if the Participant's NDIS Plan is replaced or the Participant stops being a participant in the NDIS.

14. Acknowledgement

Document created: 1.11.2020
Updated: 17.12.2021

Participant/Participant's representative agrees that this agreement has been explained and agrees to receive the Services from FFG on the terms and conditions set out in this Service Agreement.

Signed by:

Name: Sarah-Jane Hammo

[Participant / Participant's representative]

[Participant / Participant's representative]

Name: Alex Bowers

Signature: _____

Authorised person from FFG

Authorised person from FFG

Date: 03/03/2022

FFG contact details:

FFG Address	**2/210 Jull street, Armadale, 6112, WA**
Contact Name	Accounts
Contact Number	08-61177786 Accounts@ffg.net.au

FFG/NDIS Service Agreement check list

- ☑ I understand what is expected of me
- ☑ I understand what is expected from FFG
- ☑ I understand what services I have agreed for FFG to deliver
- ☑ I understand what services will be delivered by FFG and how they will be charged
- ☑ I understand what to do if I want to make changes to this Service agreement
- ☑ I understand what is expected of me if I want to make changes to my services
- ☑ I understand what is expected of me if I want to end this Service agreement
- ☑ I understand what to do if I have a problem and I know who to contact
- ☑ I have signed the Service agreement acknowledgement
- ☑ I have provided FFG a copy of my NDIS plan
- ☑ I have a copy of this Service agreement for my records or a copy will be sent to me

Doc ID: 5761b90b70767fe987c98e5ce3e047ce0bcb2a0f

Document created: 1.11.2020
Updated: 17.12.2021

FORWARD FOCUSED
YOU ARE OUR FOCUS

I have completed this checklist and by signing here indicate that I understand this Service Agreement

Name: Sarah-Jane Hammond

Signature: _____

[Participant / Participant's representative]

[Participant / Participant's representative]

Date: 3/3/2022

Doc ID: 5761b90b70767fe987c98e5ce3e047ce0bcb2a0f

HELLOSIGN

Audit trail

TITLE	NDIS-FFG Service Agreement
FILE NAME	FFG - NDIS SERVIC...SUPPORT COORD.pdf
DOCUMENT ID	5761b90b70767fe987c98e5ce3e047ce0bcb2a0f
AUDIT TRAIL DATE FORMAT	MM / DD / YYYY
STATUS	• Signed

Document history

SENT	**03 / 03 / 2022** 02:32:10 UTC	Sent for signature to Sarah-Jane Hammond (sez.j.hammond.music@gmail.com) from admin@ffg.net.au IP: 159.196.89.232
VIEWED	**03 / 03 / 2022** 02:32:27 UTC	Viewed by Sarah-Jane Hammond (sez.j.hammond.music@gmail.com) IP: 120.16.172.72
SIGNED	**03 / 03 / 2022** 02:34:59 UTC	Signed by Sarah-Jane Hammond (sez.j.hammond.music@gmail.com) IP: 120.16.172.72
COMPLETED	**03 / 03 / 2022** 02:34:59 UTC	The document has been completed.

Powered by HELLOSIGN